

RUSSIA 2014 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Russian Federation has a highly centralized, increasingly authoritarian political system dominated by President Vladimir Putin. The bicameral Federal Assembly consists of a directly elected lower house (State Duma) and an appointed upper house (Federation Council), but these bodies lacked independence from the executive. The State Duma elections in 2011 and the presidential election in 2012 were marked by accusations of government interference and manipulation of the electoral process. Security forces generally reported to civilian authorities, although in some areas of the North Caucasus, especially Dagestan and Kabardino-Balkaria, civilian authorities did not exercise full control over security forces.

In February the armed forces unlawfully entered Ukraine's Crimean Peninsula and then occupied and attempted to "annex" the Crimean peninsula in March. The international community denounced the occupation and refused to recognize the country's purported annexation of Crimea. The government also trained, equipped, and supplied pro-Russia "separatist" forces in Donetsk and Luhansk oblasts of eastern Ukraine, who were joined by numerous fighters from Russia. International monitors and human rights nongovernmental organizations (NGOs) attributed thousands of civilian deaths and injuries, as well as widespread human rights abuses, to Russia-backed separatists in the Donbas region and the Russian occupation authorities in Crimea (for details see Ukraine report).

The conflict in Ukraine also resulted in a high degree of lawlessness along the country's border with Ukraine, notably associated with several high-profile abductions of Ukrainian citizens, the unrestricted movement of separatist militants and Russian government forces between Russia and Ukraine, and the flow of refugees and asylum seekers across the border into the country.

The most significant human rights problems involved:

1. **Restrictions on Freedoms of Expression, Assembly, and Association:** The government increasingly instituted a range of measures to suppress dissent. The government passed new repressive laws and selectively employed existing ones systematically to harass, discredit, prosecute, imprison, detain, and fine individuals and entities that engaged in activities critical of the government, including NGOs, independent media outlets, bloggers, and the political opposition. Individuals and

organizations that professed support for the government of Ukraine or opposed the Russian government's activities in Ukraine were especially targeted.

2. Political Prosecutions and Administration of Justice: Officials again denied due process to defendants in politically motivated cases, including the prosecutions of several defendants arrested after the 2012 anti-Putin demonstration on Bolotnaya Square in Moscow, the arrest and imprisonment of environmental activist Yevgeny Vitishko for anticorruption activism during the Sochi Olympics, the December convictions of Aleksey Navalnyy and his brother for fraud, and criminal cases opened against several other political activists and human rights advocates. The government fined selected NGOs and stigmatized them by adding them to a list of registered "foreign agents." Authorities failed to bring to justice the individuals responsible for the deaths of prominent journalists, activists, and whistleblowers.

3. Government Discrimination against Racial, Ethnic, Religious, and Sexual Minorities: The government continued to discriminate against and politically prosecute lesbian, gay, bisexual, and transgender (LGBT) persons; some religious and ethnic minorities; and migrant workers. The government stoked societal xenophobia and utilized the pretext of "conservative" moral values and Russian nationalism, coinciding with a high level of violent attacks against minorities. Publicly expressed anti-Semitic sentiment by officials and the state media increased compared with previous years. Authorities at times used a variety of tactics, from canceling venues to multiple bomb threats, to interrupt LGBT gatherings and intimidate organizers and participants.

Other problems reported during the year included: allegations of torture and excessive force by law enforcement officials, life-threatening prison conditions, electoral irregularities, widespread corruption, violence against women, limits on the rights of women (especially in Ingushetia, Chechnya, Kabardino-Balkaria, Karachaevo-Cherkessia, and Dagestan), trafficking in persons, social stigma against persons with HIV/AIDS, and limitations on workers' rights.

The government failed to take adequate steps to prosecute or punish most officials who committed abuses, resulting in a climate of impunity.

Conflict in the North Caucasus between government forces, insurgents, Islamist militants, and criminal forces led to numerous human rights abuses, including killings, torture, physical abuse, politically motivated abductions, and a general degradation in rule of law. The government generally did not investigate or prosecute abuses, in particular when regional authorities were responsible.

Security forces in the Republic of Chechnya under the direct control of the government of Ramzan Kadyrov engaged in several instances of collective punishment of those either accused of or allegedly affiliated with terrorist activities, including family members. Chechen authorities also failed to assure the safety of some human rights defenders.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

There were several reports that the government or its agents committed arbitrary or unlawful killings. In the North Caucasus, both authorities and local militants carried out numerous extrajudicial killings (see section 1.g.).

Prison officials and police subjected inmates and suspects in custody to physical abuse that in some instances resulted in death (see section 1.c.). According to reports from local media and international human rights organizations, physical abuse committed by prison personnel and ordinary police officers was especially widespread in pretrial detention centers (SIZO).

On September 17, according to press reports, the head of the Criminal Investigation Department of Moscow's Solnechnogorskiy District and two police officers from that department arrested an unnamed Tajik citizen on allegations of sexually assaulting a minor. According to local news reports, the officers assaulted the detainee inside the police facilities, and he died from his injuries a few hours later. Three days later the officers were detained for their involvement in the killing. No information was available about their charges or trial at year's end.

Incidents of mistreatment or death in prison facilities often went unpunished. For example, on April 28, inmates at Sverdlovskaya Oblast Prison Colony 2 allegedly stabbed and killed another inmate, Kiril Ryazanov, on instructions of the prison staff. Prison administrators in turn accused Ryazanov's cellmates of the killing. As of year's end, no charges had been filed against the prison staff, and no actions had been taken against the accused inmates.

When cases of torture led to death in police custody, the officers involved often were not punished. On September 10, Tatarstan's Investigative Committee announced that it would not file charges against five police officers for the torture and death of Pavel Drozdov, arrested in 2012 for violating an administrative law. According to investigators, the officers beat and kicked Drozdov, bound his arms

and legs together behind his back in the “swallow” position with handcuffs, belts, and ropes, and then kicked him while he was lying on his stomach. After a medical examination, the Investigative Committee concluded that the use of physical force and “improvised means” against the detainee was lawful and that the officers’ actions could not have led to Drozdov’s death.

Human Rights Watch (HRW) reported on December 24 that authorities in Nalchik refused to investigate allegations that 12 individuals convicted on December 23 of mass terrorism charges were tortured in detention. According to Amnesty International and HRW, credible photographic evidence and medical records indicated the men were tortured, most likely to coerce their confessions.

In some cases authorities did not initiate official investigations into suspected killings even when they were instructed to do so by the European Court for Human Rights (ECHR). For example, on April 7, the ECHR ruled that prison officials in Tatarstan engaged in the fatal torture and psychological neglect of Valeriy Kosenko, a prisoner in a local detention facility called Electrotechnical ATS, in Naberezhnye Chelny; Kosenko was found dead in his cell in 2009. Prior to the court’s decision, the Investigative Committee on five separate occasions had refused to look into the circumstances surrounding Kosenko’s death. In July, Georgiy Matyushkin, the Tatarstan regional human rights ombudsman, stated that police had failed to take all necessary measures to preserve Kosenko’s life while he was imprisoned, but no further investigation was opened in the case.

b. Disappearance

Enforced disappearances for both political and financial reasons continued in the North Caucasus (see section 1.g.). On January 9, the ECHR issued a judgment ordering the government to pay approximately \$2.6 million to the families of Chechens who disappeared in the previous decade. The court noted that the government had failed to demonstrate that its forces were not responsible for the disappearance of 36 men between 2000 and 2006.

Security forces allegedly also were responsible for the kidnapping and disappearance of asylum seekers from Central Asia, particularly Uzbekistan and Tajikistan (see section 2.d.).

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the constitution prohibits such practices, numerous credible reports indicated that law enforcement personnel engaged in torture, abuse, and violence to coerce confessions from suspects and that authorities generally did not hold officials accountable for such actions. If law enforcement officials were prosecuted, they were typically charged with simple assault or exceeding authority. According to human rights activists, judges often elected to rule that these were cases of abuse of power rather than torture. The constitution's definition of torture implies a private crime between two or more individuals of similar rank, meaning an act of abuse committed by one private citizen against another. Courts often elected instead to utilize legislation against abuse of power, as this definition, according to legislative statutes, better captures the difference in authority between an officer of the law and the private individual receiving the abuse.

In 2013 the ECHR found the state violated the European Convention on Human Right's prohibition on torture and inhuman or degrading treatment in 119 of 129 cases heard by the court during the year.

Physical abuse of suspects by police officers was reportedly systemic and usually occurred within the first few days of arrest. Reports from human rights groups and former police officers indicated police most often used electric shocks, suffocation, and stretching or applying pressure to joints and ligaments, as those methods were considered less prone to leave visible marks. In the North Caucasus, local law enforcement organizations as well as federal security services reportedly committed torture (see section 1.g.).

On March 14, according to local media and human rights groups, while being detained by local police purporting to inspect his internal passport, Dmitriy Pakhomov, an Orenburg railway employee, asked the officers to identify themselves and in retaliation was restrained in a police vehicle, threatened with death, and physically assaulted before being left semiconscious on the side of the road. Official medical reports noted multiple injuries, including a brain injury, concussion, a broken nose, multiple bruises, other facial and head injuries, and bruised wrist joints. The local prosecutor's office opened an investigation on July 18, months after the crime, but there were no arrests by year's end.

On February 20, authorities arrested Chechen human rights activist Ruslan Kutayev for alleged possession of heroin with intent to sell, a charge that many in the human rights community believed authorities fabricated in retaliation for his human rights activities. While in police custody, Kutayev reported to his attorneys that officials in the government of Chechen leader Ramzan Kadyrov beat him,

subjected him to electric shocks, and threatened harm to his family members to force Kutayev to confess to the alleged crime. On March 2, Chechnya's Investigative Committee, the government body authorized to conduct criminal investigations, opened a preliminary inquiry into the allegations that Kutayev was tortured. The inquiry continued at year's end. In mid-March the human rights ombudsman and the head of the Presidential Human Rights Council jointly petitioned the General Prosecutor's Office to transfer Kutayev to a different region to ensure his safety and to move the torture inquiry to the federal level. Despite confirmation by defense eyewitnesses at a June 21 hearing of Kutayev's reports of his mistreatment and detention without cause, on July 7, Kutayev was sentenced to four years in prison and prohibited from participating in public assemblies for one additional year (see section 1.e.).

Numerous allegations of police torture continued to come out of the Republic of Tatarstan. The 2012 death of Tatarstan resident Sergey Nazarov, due to being severely beaten and raped at a local police station, raised attention to torture cases in the region. On July 15, a court in Kazan sentenced eight officers to prison for their involvement in Nazarov's death. The sentences ranged from two years in a penal colony for persons involved only in the cover-up to 12- and 15-year sentences in high-security camps for those most responsible. Those convicted appealed.

There were numerous new reports during the year that Tatarstan police allegedly tortured pretrial detainees. For example, on January 7, Mikhail Martyanov, a suspect in a November 2013 arson attack against two Orthodox churches, alleged that police had beaten him and subjected him to electric shock in an effort to make him confess. Martyanov's alleged accomplice, Rafail Zaripov, was hospitalized in December 2013 with a severe spinal injury, bruises on his body, and blood in his urine. His defense team asserted that he also had been tortured in prison to force a confession. As of year's end, the local investigative committee had not opened an investigation into Zaripov's allegations of torture.

Police attacks on political and human rights activists, critics of government policies, and persons linked to the opposition continued. On February 19, Cossack militia, under what activists claimed was tacit approval by the local Ministry of the Interior office, attacked members of the political protest/art group Pussy Riot in Sochi as they attempted to stage a performance under a banner advertising the Sochi Olympics. Video of the incident widely circulated on the internet showed militia members attacking six group members with pepper spray and horse whips as they attempted to host an unscheduled street performance. The Cossacks pulled

the members' signature ski masks off their heads and beat them across their heads and shoulders with whips. The regional governor of Krasnodar, Aleksandr Tkachev, promised a thorough probe into the incident, but authorities had not opened an investigation as of year's end.

Reports by refugees, NGOs, and the press suggested a pattern of beatings, arrests, and extortion by police of persons whose ethnic makeup was assumed to be Romani, Central Asian, African, or of a Caucasus nationality.

There were multiple reports of authorities detaining defendants for psychiatric evaluations for up to 30 days as a means of pressuring them. On June 11, the Chekhov City Court of the Moscow Region released Bolotnaya Square activist Mikhail Kosenko from his 2013 sentence of indefinite detention in a psychiatric facility, which human rights activists widely believed to be politically motivated. Kosenko, who served 11 months in psychiatric detention, continued his court-ordered treatment on an outpatient basis.

On August 27, Lieutenant Nadezhda Savchenko, a Ukrainian military pilot volunteering with the Aidar battalion outside Luhansk, Ukraine, was remanded to a 30-day hold for psychiatric evaluation during her trial on charges of killing two Russian journalists in Metallist, Ukraine, on June 17 (see section 1.e.). Savchenko's attorneys noted that their client had no history of mental illness or of seeking psychiatric care and that the court's decision came as a surprise. While psychiatric evaluation is a required element of criminal prosecution for "major violent crimes," such as murder, manslaughter, and attempted suicide, Savchenko's transfer from Voronezh to Moscow's Serbskiy Institute, a psychiatric center infamously associated with the indefinite detention and excessive medication of activists during the Soviet period, coupled with the extended processing of her trial, led activists and the international media to call into question the legitimacy of this evaluation. On November 11, Savchenko was found mentally fit to stand trial, and the prosecution won a motion to use the results of her psychiatric evaluation as expert proof of Savchenko's "history of violent behavior," which Savchenko's defense claimed would unfairly color her trial. At year's end Savchenko remained in detention.

Physical abuse and hazing continued to be a problem in the military. The NGO Committee of Soldiers' Mothers and the Chief Military Prosecutor's Office reported an increase in incidents of "dedovshchina" (a pattern of hazing) and other violence against conscripts. The Committee of Soldiers' Mothers received more

than 4,000 complaints involving violations of the rights of conscripts, including hazing cases.

On January 26, local media reported an Omsk Oblast conscript jumped out of the fourth-floor window of his barracks room to escape hazing and humiliation by his section commander. The incident occurred on the eighth day of the conscript's service. Despite the conscript's severe injuries, army officers refused to open an investigation and reported the incident as an attempted suicide.

Prison and Detention Center Conditions

Conditions in prisons and detention centers varied but were sometimes harsh and life threatening. Limited access to health care, food shortages, abuse by guards and inmates, inadequate sanitation, and overcrowding were common in prisons, penal colonies, and other detention facilities.

Physical Conditions: Authorities held prisoners and detainees in five types of facilities: temporary police detention centers, pretrial detention facilities (SIZO), correctional labor colonies (ITKs), prisons for those who violate ITK rules, and educational labor colonies for juveniles. As of September 1, according to the Federal Penitentiary System, the prison population was 674,500, compared with 680,200 at the end of 2013. This figure included 556,200 offenders held in 728 correctional colonies, 40,200 persons held in correctional labor colonies, 1,897 prisoners serving life sentences in six prisons, and 1,800 juveniles in 41 educational colonies. Authorities held approximately 115,000 detainees in 219 pretrial detention centers.

“Unofficial” prisons, many of which were located in the North Caucasus Region, reportedly continued to operate.

As of September 1, there were approximately 55,000 women in prison, compared with 56,200 in 2013. Penal Reform International reported conditions were generally better in women's colonies than in men's but remained substandard. Thirteen women's facilities also contained facilities for underage children of inmates who had no options for housing them with friends or relatives. In September there were 670 children in these facilities.

Health, nutrition, ventilation, and sanitation standards varied between facilities but generally were poor. Potable water sometimes was rationed. The federal

minimum standard of space per person in detention is 43 square feet, and facilities generally met the standard.

On July 6, a report by Chelyabinsk human rights activists alleged numerous violations of nutrition and sanitation standards in the region's penitentiaries and detention centers. Prisoners reported the prison staff often "forgot" to feed them. They also complained about a lack of sinks and toilets in the cells. Female inmates reported they were not offered personal hygiene products.

In a 2012 pilot judgment in the case of *Ananyev v. Russia*, the ECHR noted that inadequate conditions of detention were a recurrent and systemic problem in the country and ordered the government to draft a binding implementation plan to remedy the situation. In 2012 the government submitted an action plan for implementing the court's decision, establishing a working group and laying out a proposed series of draft laws and plans for construction of dozens of new detention centers. As of year's end, however, the working group had not submitted the proposed draft laws on detention, and there were no significant updates on the group's progress.

Access to quality medical care remained a significant problem in the penal system. For example, on January 6, a Moscow court sentenced a fully paralyzed man, Vladimir Topekhn, to six years in prison on fraud charges, a sentence it later reduced to four years. Authorities had held Topekhn in pretrial detention since June 2013, during which time a spinal injury from a car accident that occurred a few days before his arrest was left untreated; his body became increasingly paralyzed due to medical neglect and further subsequent injury at Butyrka prison. Members of the Moscow Prison oversight commission expressed concern that Topekhn was unable to feed himself, change his own diapers, or wash himself and that authorities had not made special provisions for his care, leaving him at the mercy of the inmates in his cell. On July 7, after more than a year in detention, a Kostroma court ordered Topekhn's release on health grounds, allowing him to receive medical treatment.

In the case of Sergey Magnitskiy, a lawyer who died of medical neglect and abuse while in pretrial detention in 2009, authorities had not as of year's end brought those responsible for his death to justice. The investigation into the circumstances surrounding his death remained officially closed.

Tuberculosis among the country's prison population continued to be a significant problem. The incidence of tuberculosis among the country's prison population

was 1,117 per 100,000, more than 17 times higher than the national average. While all correctional facilities had medical units or health centers, only 58 treatment facilities provided treatment for tuberculosis patients, and only nine prisons provided medical services for drug addiction. On January 22, the Leningrad prosecutor's office released a report of an audit of the region's prison health-care facilities, which indicated numerous violations of statutory standards of care for HIV-infected and tuberculosis patients in diagnosis and treatment, as well as evaluation of test results.

Reports continued of prison staff abusing prisoners. On November 27, a 22-year-old university student, Magomed Aliyev, was brought by officials from a Stavropol pretrial detention center to a hospital in critical condition. Aliyev had been arrested three days prior in Moscow on charges of cooperating with terrorists and was transported to Stavropol. At the hospital doctors documented extensive bruising and serious damage to multiple internal organs, and they removed a pen that had been shoved so far into Aliyev's eyeball that it had damaged his brain. According to federal prison authorities, Aliyev's injuries were a result of a suicide attempt, although Aliyev's relatives claimed his injuries were inconsistent with this explanation. According to the Caucasian Knot news outlet, the Stavropol Investigative Committee had opened an inquiry into the case.

There was no progress in the investigation into police abuse of construction worker Martiros Demerchyan, who human rights groups and local media reported had been brutally beaten and raped by Sochi police in 2013 after he requested payment of his due back wages. On December 17, a Moscow court convicted Demerchyan of making a false police report about the torture and sentenced him to 300 hours of corrective labor. Human rights groups condemned the verdict.

In some cases prison authorities encouraged prisoners to abuse certain inmates. For example, well-known environmental activist Yevgeniy Vitishko reported the administration of his prison colony in Tambovskaya Oblast actively fomented anger towards him among other prisoners "in order to make the conditions of imprisonment unbearable." On June 10, Vitishko's supporters released a statement claiming that in retaliation for the activist's having spoken out about the widespread beatings of prisoners at that facility, prison authorities told prisoners that Vitishko was responsible for the fact that they could no longer make telephone calls.

Abuse of prisoners by other prisoners also continued to be a problem. There were elaborate inmate-enforced caste systems in which certain groups--including

informers, gay inmates, rapists, prison rape victims, and child molesters--were considered “untouchables” (the lowest caste). Prison authorities provided little or no protection to these groups.

Administration: Prisoners had visitation rights, but authorities could deny access to visitors depending on the circumstances. Authorities allowed prisoners serving a regular sentence four three-day visits with their spouses per year. On occasion prison officials cancelled visits if the prison did not have enough space to accommodate them. The judge or investigator in a prisoner’s case could deny the prisoner visitation rights. Authorities could also prohibit relatives deemed a security risk from visiting prisoners. The number of visitors was limited, usually to two adults and two children on each visit.

Prisoners generally could observe their religious practices and have access to religious ministry and literature.

Independent Monitoring: There were no prison ombudsmen. While prisoners could file complaints with public oversight commissions or with the Human Rights Ombudsman’s Office, they were often afraid of reprisal. Prison reform activists reported that only prisoners who believed they had no other option risked the consequences of filing a complaint. Complaints that reached the oversight commissions often focused on minor personal requests.

The law regulating public oversight of detention centers allows public oversight commission representatives to visit facilities. There were 712 members of 79 registered commissions in 43 regions. Authorities permitted only the oversight commissions to visit prisons regularly to monitor conditions. There were reports, however, that prison officials, citing disease or danger, denied access to inspectors upon arrival. According to the Nizhny Novgorod-based Committee Against Torture, public oversight commissions were legally entitled to have access to all prison and detention facilities, including psychiatric facilities, but prison authorities often prevented them from accessing these facilities. The law does not establish procedures for local authorities to respond to oversight commission findings or recommendations, which are not legally binding.

In November new members were added to public oversight commissions, but appointment and selection procedures prevented many human rights defenders from participating, decreasing the effectiveness of oversight commission observation in many regions. At the same time, authorities increased appointments of former military, police, and prison officials to oversight commissions,

effectively placing them under the control of law enforcement agencies. According to activists and local journalists, the level of independence of the oversight commissions varied by region. For example, *Vedomosti* newspaper reported that after the November 2013 selection of new members for the Moscow public oversight commission, the majority of commission members were former officers of the security services and former prison officials, rather than human rights activists who had historically made up the majority of commission members.

d. Arbitrary Arrest or Detention

While the law prohibits arbitrary arrest and detention, authorities engaged in arbitrary arrest and detention with impunity.

Role of the Police and Security Apparatus

The Ministry of Internal Affairs, the Federal Security Service (FSB), the Investigative Committee, and the Office of the Prosecutor General are responsible for law enforcement at all levels of government. The FSB is responsible for security, counterintelligence, and counterterrorism as well as for fighting organized crime and corruption. The national police force under the Ministry of Internal Affairs is organized into federal, regional, and local levels.

Arrest Procedures and Treatment of Detainees

By law authorities may arrest and hold a suspect at the scene of a crime for up to 48 hours without court approval, provided there is evidence of the crime or a witness; otherwise, an arrest warrant is required. After arresting them, police typically take detainees to the nearest police station, where they inform them of their rights. Police must prepare a protocol stating the grounds for the arrest, and both detainee and police officer must sign it within three hours of detention. Police must interrogate detainees within the first 24 hours of detention. Prior to interrogation, a detainee has the right to meet with an attorney for two hours. No later than 12 hours after detention, police must notify the prosecutor. They must also notify the detainee's relatives unless a prosecutor issues a warrant to keep the detention secret. Police are required to release a detainee after 48 hours, subject to bail conditions, unless a court decides, at a hearing, to prolong custody in response to a motion filed by police not less than eight hours before the 48-hour detention period expires. The defendant and his or her attorney must be present at the court hearing.

By law police must complete their investigation and transfer a case to a prosecutor for arraignment within two months of a suspect's arrest, although an investigative authority may extend a criminal investigation for up to 12 months. Extensions beyond 12 months need the approval of the head federal investigative authority in the Internal Affairs Ministry, the Federal Drug Control Service, the FSB, or Investigative Committee. According to some defense lawyers, these time limits often were exceeded, especially in cases with a high degree of public interest.

There were a number of problems relating to defendants' ability to obtain adequate defense counsel. Federal law provides defendants the right to choose their own lawyers, but investigators generally did not respect this provision, instead designating lawyers friendly to the prosecution. These "pocket" defense attorneys agreed to the interrogation of their clients in their presence while making no effort to defend their clients' legal rights. In many cases, especially in more remote regions, defense counsel was not available for indigent defendants. Judges usually did not suppress confessions of suspects taken without a lawyer present. Judges at times freed suspects held in excess of detention limits, although they usually granted prosecutors' motions to extend detention periods.

Authorities generally respected the legal limitations on detention except in the North Caucasus. There were reports of occasional noncompliance with the 48-hour limit for holding a detainee. At times authorities failed to issue an official detention protocol within the required three hours after the actual detention began and held suspects longer than the legal detention limits. The practice was widespread in the North Caucasus (see section 1.g.) and was applied frequently to labor migrants of non-Slavic appearance (see section 6); LGBT protesters (see section 2.a.); certain journalists, especially those writing about the situation in Ukraine; human rights activists; and in a number of politically motivated cases (see section 1.e.).

On June 7, the human rights center Memorial released a statement describing the case of Alvi Abdurakhmanov, a resident of Chechnya who had been held without charge or trial for more than two and one-half months at an undisclosed location. Local prosecutors only began official trial proceedings against the defendant after Memorial filed a public complaint 86 days after Abdurakhmanov's arrest. On February 25, a court in Chechnya found Abdurakhmanov innocent of charges of robbery and assault of a police officer, but Chechen leader Ramzan Kadyrov criticized the court decision in the press, and Abdurakhmanov disappeared the day after Kadyrov's comments.

Arbitrary Arrest: There were many reports of arbitrary arrest. Following bombings in Volgograd in December 2013, the media on January 12 reported that more than 700 persons, primarily migrants from the North Caucasus and Central Asia, were arbitrarily arrested in and around the city. According to local media reports, the majority of those arrested were held for the duration of the Sochi Winter Olympics and then released without having being officially charged.

In the weeks prior to the Sochi Olympics in February, human rights groups reported multiple instances of arbitrary arrest of activists and journalists in the neighboring Krasnodar Region to prevent their participation in Olympic-related protest actions (see section 2.b.). The government did not limit its arrests to citizens and residents of the country. On January 29, journalist Oystein Bogen, a foreign affairs correspondent for TV2 in Norway, noted that authorities stopped, arrested, and detained him and his television crew more than six times in the 48 hours leading up to the Sochi Olympic opening ceremonies. Bogen asserted that his arrests during this period were related to his media outlet's coverage of stories critical of the government's preparations for the Olympics. Bogen noted to the *Huffington Post* that he felt most afraid when officials "invented a suspicion" that he had been taking drugs and nearly forced him to take a drug test, which he believed would have been contaminated by local authorities. He stated there was one instance when he and his team were detained illegally for three hours, during which time officials took their cell phones and possibly stole source information.

During the year there were multiple reports of authorities detaining human rights activists and independent journalists for lengthy questioning at airports. For example, on June 5, transport authorities detained Anna Sharogradskaya, the 73-year-old director of the Regional Press Institute, at Pulkovo airport for five hours. The authorities released her after confiscating her computer and USB drives. Her detention occurred before she could board a scheduled flight abroad, where she was set to deliver a series of lectures. Sharogradskaya noted that authorities detained her on suspicion that she was "smuggling classified documents," but she surmised that her arrest likely was connected to a lawsuit against a St. Petersburg prosecutor that her organization had filed prior to her departure.

Pretrial Detention: According to statistics released by the Supreme Court, as in previous years, domestic courts, relying on the arguments of the prosecution, granted more than 90 percent of applications for detention orders and nearly 100 percent of requests to extend the duration of detention orders.

In some high-profile cases, authorities placed individuals under restrictive pretrial house arrest regimes for political purposes. For example, on February 28, the Moscow City Court placed opposition leader and former Moscow mayoral candidate Aleksey Navalnyy under house arrest for two months for alleged violations of the terms of a suspended sentence from a previous court decision. Navalnyy stood accused of theft from a timber company in 2009, for which he received a suspended sentence of five years. Authorities accused him of violating the terms of his parole by traveling outside of Moscow and engaging in political activities.

In February 2013 authorities placed Bolotnaya Square protest organizer Sergey Udaltsov under house arrest. Authorities arrested Udaltsov in May 2012 and issued a court order for him not to leave Moscow in October 2012. Udaltsov remained under house arrest for 17 months, until he and co-organizer Leonid Razvozhayev were sentenced to four and one-half years in prison on July 24.

Detention of Rejected Asylum Seekers or Stateless Persons: Authorities continued to detain many asylum seekers while their cases were pending as well as all rejected asylum seekers prior to deportation or pending judicial review (see section 2.d.). Human rights NGOs reported authorities regularly used protracted detention, including detention past the legal limit of 18 months, in such cases.

Amnesty: On June 26, Khimki regional authorities announced that they had dropped a 2010 case against two environmental activists, Peter Silayev and Dennis Solopov, in response to their amnesty requests. The two activists, who had received asylum in 2012 in Finland and the Netherlands, respectively, were informed that they would be able to return to the country.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, but judges remained subject to influence from the executive branch, the military, and other security forces, particularly in high-profile or politically sensitive cases. The law requires judicial approval of arrest warrants, searches, seizures, and detentions. Officials generally honored this requirement, although bribery or political pressure sometimes subverted the process of obtaining judicial warrants.

According to an April report by the then ombudsman for human rights, Vladimir Lukin, almost 57 percent of the 24,930 complaints received by his office in 2013

related to violations of civil rights. More than 67 percent of the complaints involved alleged violations of the right to a fair trial.

Judges routinely received calls from superiors instructing them how to rule in specific cases. The Presidential Council for the Development of Civil Society and Human Rights (“Human Rights Council”) reported in 2013, “In practice [judges] do not possess genuine, as opposed to declaratory, independence. The powers of a judge who does not agree to carry out the requests may be prematurely terminated. In such a situation, the conscientious judge is subject to pressure from within the judicial system and has no chance of defending his or her own rights.”

A November 2013 report by the Council of Europe’s human rights commissioner on the protection of human rights in the country’s judicial system noted concerns that “perceptions persist that judges were not shielded from undue pressure, including from within the judiciary.”

In many cases authorities reportedly did not provide adequate protection for witnesses and victims from intimidation or threats from powerful criminal defendants.

Trial Procedures

A judge without a jury typically hears trials (bench trials). The defendant has a legal presumption of innocence. The law provides for the use of jury trials for a limited range of crimes in higher-level regional courts. Certain crimes, including terrorism, espionage, hostage taking, and mass disorder, must be heard by panels of three judges rather than by juries. The trials of Bolotnaya protesters were an exception to this rule, in which a panel of three judges heard each case. Sources close to these trials noted that the particularly politically sensitive nature of these trials led to their being restricted to judge-only decisions. Juries tried approximately 600 to 700 cases each year, or 0.05 percent of all criminal cases. While judges acquitted less than 1 percent of defendants, juries acquitted an estimated 20 percent. After 2008 the number of jury trials continued to decline, which legal experts attributed to an effort by officials to avoid acquittals in criminal cases. In the case of crimes to which the death penalty could have been applied prior to the country’s 1996 death penalty moratorium, persons who are accused have the option of a trial by a jury consisting of 12 jurors.

The law allows prosecutors to appeal acquittals, which they did in most cases. Prosecutors may also appeal what they regard as lenient sentences. Appellate

courts reversed approximately 30 percent of acquittals and remanded them for a new trial, although these cases often ended in a second acquittal.

During trial the defense is not required to present evidence and is given an opportunity to cross-examine witnesses and call defense witnesses, although judges can deny the defense this opportunity. Defendants who are in custody during a trial were confined to a caged area, which was replaced by glass enclosures in some courts. Defendants have the right of appeal. Prior to trial defendants receive a copy of their indictment, which describes the charges against them in detail. They also have the opportunity to review their criminal file following the completion of the criminal investigation. The law provides for the appointment of an attorney free of charge if a defendant cannot afford one, although the high cost of competent legal service meant that lower-income defendants often lacked competent representation. There were few qualified defense attorneys in remote areas of the country. Defense attorneys may visit their clients in detention, although defense lawyers claimed authorities electronically monitored their conversations and did not always provide them access to their clients.

Plea bargaining was used in criminal cases, and the law allows a defendant to receive a reduced sentence for testifying against others. Plea bargains reduced defendants' time in pretrial detention in approximately 50 percent of cases, reduced the average prison term to no more than half of the otherwise applicable statutory maximum, and allowed courts and prosecutors to devote their resources to other cases.

Political Prisoners and Detainees

Authorities detained and prosecuted individuals for political reasons. On October 30, the human rights center Memorial updated its list of political prisoners to include 46 names, an increase from the 42 individuals the organization listed in 2013. Names added to the list during the year were Nadezhda Savchenko, imprisoned Ukrainian pilot; Ruslan Kutayev, imprisoned for alleged possession with intent to sell narcotics; Dmitriy Ishevskiy, imprisoned for participation in the Bolotnaya Square protest; and Aleksey Navalnyy, under house arrest for money laundering and conspiracy.

After the country's military intervention in, and purported "annexation" of, Crimea in March, judicial authorities began to assert jurisdiction over legal cases underway in that part of Ukraine. In September the press reported authorities transferred

Khayzer Dzemilev--son of prominent exiled Crimean Tatar leader Mustafa Dzhemilev--from Crimea to Russia's Krasnodar Region for trial on charges of first-degree murder, although Russia's criminal code has the option of a manslaughter charge for similar crimes. According to media reports, in May 2013 authorities arrested Dzhemilev and charged him with fatally shooting his neighbor, Fevzi Edemova; Dzhemilev initially was charged with manslaughter under Ukrainian law. Human rights activists familiar with the case asserted the more serious charge and its related longer possible prison sentence constituted an effort by occupation authorities to pressure Dzhemilev's father.

On May 23, occupation authorities in Crimea transferred detained Ukrainian filmmaker Oleg Sentsov, along with Ukrainian citizens Gennady Afanasyev, Aleksey Chirnigo, and Aleksandr Kolchenko, to Moscow for trial. The men had been detained on suspicion that the group was "plotting terrorist acts" in association with the Right Sector nationalist group. Human rights activists in the country publicly stated they believed Sentsov's arrest was politically motivated as retribution for his opposition to the country's actions in Ukraine. As of year's end, Sentsov remained incarcerated in Moscow's Lefortovo prison, and his terrorism trial continued.

On December 30, in a surprise court hearing, the Zamoskvoretskiy District Court found both opposition activist Aleksey Navalnyy and his brother Oleg Navalnyy guilty of fraud in a case involving the Yves-Rocher company. Aleksey received a three and one-half year suspended sentence, while Oleg was immediately removed from the courtroom to serve a three and one-half year prison term. Aleksey Navalnyy continued to serve a five-year suspended sentence on a 2013 theft conviction. Observers regarded both cases as being politically motivated.

Multiple Moscow courts ruled on cases related to the 2012 Bolotnaya Square case, initiated in connection with clashes between police and protesters at a demonstration on the eve of President Putin's inauguration in 2012. Many human rights groups considered the Bolotnaya case to be politically motivated. In 2013 courts tried and sentenced 14 persons in the case, five of whom received amnesty in December of that year. On February 24, the Zamoskvoretskiy District Court found eight defendants guilty and sentenced seven of them to between two and one-half and four years and one defendant to a suspended sentence. On June 11, the Chekhov District Court released Bolotnaya defendant Mikhail Kosenko from a mental hospital to continue treatment in an outpatient clinic. The court had sentenced Kosenko to indefinite psychiatric detention in 2013. On July 24, the Moscow City Court sentenced the two supposed organizers of the Bolotnaya

protests, Sergey Udaltsov and Leonid Razvozzhayev, to four and one-half years in prison. On August 18, the Moscow City Court convicted four additional defendants, sentencing three of them to prison terms of two and one-half to three and one-half years and giving the fourth defendant a suspended sentence.

At year's end an activist with the Environmental Watch of the North Caucasus, Yevgeniy Vitishko, remained in prison after being convicted in 2013 on politically motivated charges and sentenced to three years in prison.

On January 26, authorities released an associate of former Yukos tycoon Mikhail Khodorkovskiy, Platon Lebedev, from prison after he served 10 years on politically motivated charges. In December 2013 Khodorkovskiy received amnesty and was released.

Civil Judicial Procedures and Remedies

Although the law provides mechanisms for individuals to file lawsuits against authorities for violations of civil rights, these mechanisms often did not work well. For example, the law provides that a defendant who has been acquitted after a trial has the right to compensation from the government. Human rights activists claimed authorities avoided paying compensation through procedural means, such as leaving cases in pending status. Persons who believed their civil rights had been violated typically sought redress in the ECHR after the domestic courts had ruled against them.

Regional Human Rights Court Decisions

Any person may file a complaint with the ECHR concerning alleged violations of human rights by the state under the European Convention on Human Rights, provided they have exhausted “effective and ordinary” appeals in the country's courts. According to the ECHR, there were more than 33,000 cases pending against the country, and the prosecutor general indicated the number of inmates filing complaints with the ECHR continued to increase. In 2013 the ECHR found a violation of the European Convention on Human Rights in 93 percent of judgments it issued involving the country.

While the government generally paid compensation to victims when ordered to do so, it did not fully implement ECHR judgments that called for conducting effective investigations and holding perpetrators accountable. The government generally failed to change systemic practices that the ECHR repeatedly criticized.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law forbids officials from entering a private residence except in cases prescribed by federal law or when authorized by a judicial decision. The law also prohibits government monitoring of correspondence, telephone conversations, and other means of communication without a warrant and prohibits the collection, storage, utilization, and dissemination of information about a person's private life without his or her consent. There were allegations government officials and others engaged in electronic surveillance without appropriate authorization and entered residences and other premises without warrants.

Law enforcement agencies require telecommunications service providers to grant the Ministry of Internal Affairs and the FSB continuous remote access to client databases, including telephone and electronic communication and records, enabling police to track private communications and monitor internet activity without the provider's knowledge. The law permits authorities to monitor telephone calls in real time. The Ministry of Information and Communication requires telecommunications service providers to allow the FSB to tap telephones and monitor information over the internet. The information ministry maintained authorities would not access information without a court order, although the FSB is not required to show it upon request.

A new law requires that websites maintain user information databases on the territory of the country and provide this information to the security services upon request (see section 2.a.).

g. Use of Excessive Force and Other Abuses in Internal Conflicts

Violence continued in the North Caucasus republics, driven by separatism, interethnic conflict, jihadist movements, vendettas, criminality, excesses by security forces, and the activity of terrorists. According to the online newspaper *Caucasian Knot*, total number of deaths and injuries due to the conflicts in the North Caucasus decreased compared with 2013 in all republics of the North Caucasus. According to human rights activists in the region, violence in Dagestan and Chechnya continued at a high level. Dagestan continued to be the most violent area in the North Caucasus, with more than 60 percent of all casualties in the region. Local media described the level of violence in Dagestan as the result of Islamic militant insurgency tactics continuing from the Chechen wars as well as the high level of organized crime in the region.

Killings: *Caucasian Knot* reported that during the year there were at least 341 deaths and 184 persons injured in the North Caucasus as a result of armed conflicts in the region. There were 208 deaths from armed conflict in Dagestan, making it the most deadly region. Of the deaths in Dagestan, 163 were militants, 24 were civilians, and 21 were law enforcement officers.

As of December 1, three journalists were killed in the North Caucasus during the year (see section 2.a.).

There continued to be reports that security force use of indiscriminate force resulted in numerous deaths or disappearances and that authorities did not prosecute the perpetrators. According to *Caucasian Knot* and human rights groups, on September 18, security services began a counterterrorist operation in the village of Vremenny, Dagestan, and blocked anyone from entering or exiting the village. On September 19, security forces forcefully searched each of the village residences and rounded up all of the male residents, questioned them, and then ordered them to leave the village for the duration of the operation, which lasted several weeks, during which the villagers were unable to leave their homes and the media and rights advocates were not permitted to enter. Also on September 19, security forces detained four male residents, who were transported to another unknown location. Two of the men were released within a week of their detention, another was released in December, but the location of one of the men, Sultanbeg Khapizov, remained unknown to his family at year's end. No investigations into this disappearance or other abuses against civilians that took place during the operation in Vremenny had been opened at year's end.

Local militants continued to engage in violent acts against local security forces, often resulting in deaths.

Abductions: Government personnel, militants, and criminal elements continued to engage in abductions in the North Caucasus. According to the prosecutor general, as of 2011 there were more than 2,000 unsolved disappearances in the North Caucasus Region. According to data from *Caucasian Knot*, the official list of missing persons in the Northern Caucasus contained 7,570 names, and local activists contended that the number of missing persons in Chechnya was much higher than officially reported, potentially up to 18,000 or 20,000 individuals. There were reports that state security forces in the North Caucasus conducted counterterrorist operations that resulted in disappearances. For example, on July 6, eight residents of the Maidanskoe village, Untsukul District of Dagestan, were

reported missing after security forces conducted a special counterterrorist operation.

In numerous instances local officials in Chechnya provided families with incomplete or misleading information regarding the welfare and whereabouts of detained family members. For example, on March 17, the family of Magomed Tokayev requested assistance from the human rights center Memorial in locating their son, allegedly abducted by law enforcement officials on January 22. Tokayev's father stated to *Caucasian Knot* that authorities claimed his son had been taken to a detention facility in Grozniy, but when he arrived, police had no records of his son's whereabouts. As of year's end, there was no official investigation or further information on Tokayev's location.

Physical Abuse, Punishment, and Torture: Armed forces and police units reportedly abused and tortured both militants and civilians in holding facilities. On April 19, Nalchik resident Zuleikhat Ozova filed formal appeals with the Investigative Department of the Ministry of Internal Affairs for the Kabardino-Balkaria Republic (KBR), the ombudsman for the KBR, the Human Rights Center of the KBR, and the human rights center Memorial on behalf of her husband, Bezan Ozov. Ozova stated that on April 5, local law enforcement authorities detained her husband for questioning. After a few hours in detention, Ministry of Internal Affairs officers beat him with truncheons and tortured him with electric shocks before forcing him to incriminate himself. Authorities did not open an official investigation into the complaint.

On June 19, police in Kabardino-Balkaria entered the home of Murat Kuashev on suspicion that he was in possession of hand grenades and other illegal weapons. Aupet Kuashev, his father, reported to the *Caucasian Knot* that 50 armed men arrived to arrest his son, grabbed both residents, and threatened them with machine guns. Police reportedly took Murat Kuashev to an unknown location, where they allegedly tortured him with an electric cable to force a false confession of battering a police officer; Kuashev claimed his legs became paralyzed as a result of the beating. According to *Caucasian Knot*, no weapons were found, and no formal investigation was opened by year's end.

Human rights groups noted authorities often did not act to address widespread reports of physical abuse of women, including honor killings, which were increasingly common in the region (see section 6).

The law requires relatives of terrorists to pay the cost of damages caused by an attack, which human rights advocates criticized as collective punishment.

Burning the homes of suspected militants continued and was used as a threat by Chechen leader Ramzan Kadyrov to force confessions from militants as well as to convince militants' families to hand over their sons to law enforcement officials. According to first-hand accounts as well as commentary from Amnesty International, on December 7-10, a total of seven houses of family members of known insurgents were burned to the ground in an act of collective punishment for a December 4 Caucasus Emirate attack on a police checkpoint in Grozny in which 14 police and security personnel were killed and 36 were injured. On December 5, Kadyrov ordered the burning of the homes of families of militants and the expulsion of militants and their families from Chechnya. On December 10, in an Instagram post, the Chechen leader accused Committee Against Torture chairperson and member of the Presidential Human Rights Council, Igor Kalyapin, of sponsoring the December 4 attack. As a result persons attacked Kalyapin with eggs during a December 10 Moscow press conference, and on December 13, unknown assailants burned the Grozny office of his organization's Joint Mobile Group. Local police then detained two employees, Sergey Babinetz and Dmitriy Dmitriev, without charge and confiscated their technology and office records. At year's end the local investigative committee had not opened a case into the office burning.

Although there were fewer incidents involving land mines than in previous years, landmine contamination remained a problem.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

While the constitution provides for freedom of speech and press, the government increasingly restricted those rights. The government instituted a significant number of new laws that restrict both freedom of speech and press. Regional and local authorities used procedural violations and restrictive or vague legislation to detain, harass, or prosecute persons who criticized the government. The government exercised greater editorial control over state-controlled media than previously, creating a media landscape in which most citizens were exposed only to government-approved narratives. Significant government pressure on independent media constrained coverage of numerous issues, especially the situation in Ukraine, LGBT issues, the environment, criticism of local or federal

leadership, as well as secessionist or federalist topics. Self-censorship in television and the print media was reportedly increasingly widespread, particularly on issues critical of the government or its policies. The government used direct ownership or ownership by large private companies with government links to control or influence major national media and regional media outlets, especially television.

Freedom of Speech: Government-controlled media frequently used terms such as “traitor,” “foreign agent,” and “fifth column” to describe individuals expressing views critical of or different from government policy, leading to a climate intolerant of dissent.

A number of public figures were attacked after making public commentary that questioned the government’s policies. On August 29, after making public his investigations of reports of the country’s military involvement in Ukraine, Pskov opposition politician and journalist Lev Shlosberg was attacked from behind while walking to a meeting with colleagues. He lost consciousness almost immediately, but his unidentified attackers continued to beat him for several minutes with a blunt object, and he was hospitalized in serious condition. According to press reports, Shlosberg indicated that the investigation into the attack was postponed due to a lack of suspects.

Many new laws criminalize certain types of expression. On May 5, the president signed a law imposing heavy fines on anyone found to be trying to rehabilitate Nazism or denigrate the country’s World War II record. On May 23, the president signed a law toughening punishments for advocacy of separatism. On July 1, the president signed new amendments to the law on extremism that broadened the definition of extremist speech and increased fines and prison sentences. On October 15, the president signed a law prohibiting profanity in books, films, music, theater, and blogs. On November 5, the president signed a law banning the display of symbols of organizations that cooperated with fascists.

Authorities invoked the 2012 law banning “propaganda” of nontraditional sexual relations to minors to restrict the free speech of LGBT persons and their supporters. For example, on February 27, Elena Klimova, founder of the website Deti 404 (Children 404), an online forum for Russian-speaking LGBT teens to write openly and anonymously about their daily lives and hardships, was brought to trial for allegedly violating the law against homosexual propaganda. Klimova created Deti 404 in March 2013 due to concern for the effects that the law would have on young persons. In addition to providing a refuge for teens, the site carried information for adults about discrimination that LGBT teens faced. Based on the

material on *Deti 404*, authorities charged Klimova with breaking the law, although the court at her trial found no evidence of “gay propaganda” in her activities and therefore did not find her guilty under the statute. Authorities also prohibited, as evidence of homosexual propaganda, a documentary, also called *Deti 404*, detailing Klimova’s life in Nizhny Tagil, where she was forced to resign from her job as an editor at a local newspaper. On November 7, three police officers visited Klimova’s home. Three days later Klimova received a message informing her that the Federal Service for Oversight of Communication and Information Technology (Roskomnadzor) had determined that *Deti 404* violated the “gay propaganda” ban.

Authorities continued to misuse the country’s expansive definition of extremism as a tool to stifle dissent. The Ministry of Justice continued to expand its list of “extremist” materials to include 2,442 items as of September 22, an increase of more than 300 items from the same date in 2013.

By law authorities may close any organization that a court determines to be extremist, including media outlets and websites, and the organization cannot challenge the court’s decision. Roskomnadzor routinely issued warnings to newspapers and internet sources suspected of publishing “extremist” materials. Two warnings in one year were enough to initiate a closure lawsuit. For example, on October 10, Roskomnadzor issued a warning to the independent publication *Novaya Gazeta* for its publication of an article by Yulia Latynina that focused on the connection of Russian history and culture with the West. The government warning stated that the publication contained statements that fell under the law on extremist activities. Human rights groups reported such intimidation encouraged journalists and editors, who were only rarely prosecuted directly, to censor themselves.

Press Freedoms: The government increasingly restricted press freedom. The government or state-owned or state-controlled companies directly owned more than 60 percent of the country’s 45,000 registered local newspapers and periodicals. The federal or local governments or progovernment oligarchs completely or partially owned approximately 66 percent of the 2,500 television stations, including all six national channels. Government-owned media outlets often received preferential benefits, such as rent-free occupancy of government-owned buildings. At many government-owned or controlled outlets, the state increasingly dictated editorial policy.

During the year the government also purchased a greater share of major outlets across media platforms. On September 16, the government-owned Mail.ru announced it had acquired the popular social networking site, VKontakte.

New laws placed financial restrictions on the media business. On July 21, the president signed a law prohibiting many television companies that were not owned by the state from funding themselves through advertising. On September 26, the president signed a law, effective in 2017, that would limit the share of foreign ownership in a media company to 20 percent.

Independent news outlets running stories critical of the government often faced state retaliation for such coverage. On May 19, Roskomnadzor threatened to close TV2, one of the few remaining independent media outlets in Tomsk, in response to the television station's supposed inability to provide sustained local programming. According to local media reports, Roskomnadzor's allegation came as a shock to TV2, since the station had been off-air since mid-April due to a breakdown at a local broadcasting facility. TV2's editor claimed the threat was an effort by Roskomnadzor to punish the station for being an independent voice on local issues.

During the year the government continued to pressure the leadership of the country's leading independent news outlets that exposed government abuses. Government pressure continued on the independent radio station Ekho Moskv, including on its chief editor Aleksey Venedictov, who faced opposition from the station's majority stakeholder Gazprom media in relation to the station's independent editorial policies.

Many newspapers ensured their financial viability by agreeing to various types of "support contracts" with government ministries, under which the newspapers agreed to provide positive coverage of government officials and policies in news stories. Absent direct government support, independent news publications reported difficulty attracting advertising and securing financial viability, since advertisers feared retaliation if their brands became linked to publications that criticized the government.

Government targeting of independent liberal-leaning TV Dozhd persisted during the year. On January 26, the channel ran a controversial web and live-television survey that asked viewers if Leningrad should have surrendered to the invading German army during World War II in order to "save hundreds of thousands of lives." Dozhd's editors removed the poll within a half-hour and apologized for what they claimed was incorrect wording. The St. Petersburg legislature requested

Prosecutor General Yuriy Chaika to conduct an investigation into “provocative material posted on the website of the Dozhd television channel” and to take appropriate measures, including closing the station. On January 29, the largest cable television providers dropped the channel, reportedly under pressure from authorities. In March, Dozhd reported it would need to close in May due to related financial difficulties. Legislation passed in July, often called the “Dozhd law,” prohibits advertising on pay television stations and forced the channel to increase its subscription fees by nearly 500 percent. Dozhd was forced to leave its downtown-Moscow studio in October and was unexpectedly evicted from its temporary location in late November, at the same time that Roskomnadzor issued a public complaint that the organization had not properly reregistered its address after moving. The channel remained without a formal location or consistent source of funding at year’s end.

According to the Glasnost Defense Fund and other NGOs, authorities used the media’s widespread dependence on the government for access to property, printing, and distribution services to discourage critical reporting. They reported approximately 90 percent of the print media relied on state-controlled entities for paper, printing, and distribution services and that many television stations were forced to rely on the government for access to the airwaves and office space. The Glasnost Defense Fund also reported that officials continued to manipulate the price of printing at state-controlled publishing houses to pressure private media rivals.

According to the Committee to Protect Journalists (CPJ), in the months leading up to the Winter Olympics in February, the government pressured regional media in southern parts of the country not to cover sensitive Olympic-related topics, such as the exploitation of migrant workers, environmental destruction, and forced evictions. In a January 28 report, the CPJ noted that it was common for the information department of the Sochi city administration to censor Sochi media that received government financing. The censorship included the government’s reviewing programming before it was broadcast, prohibiting articles, or editing broadcasts that could be considered embarrassing to authorities, and allowing only the local crew of the government-run All-Russia State Television and Radio Broadcasting Company access to cover governmental events or other sensitive issues. According to the CPJ report, local journalists noted the company often staged interviews with individuals speaking scripted lines, which it passed to viewers as ordinary Sochi residents expressing their views.

The organization Environmental Watch of the North Caucasus utilized its website World-Sochi to document environmental abuses related to Olympic preparations, including water pollution, deforestation, and mudslides, identified by Environmental Watch of the North Caucasus and other environmental activists. According to environmental news group *Ecoreporter.ru*, the government consistently pressured the organization to stop its watchdog activities, with local authorities shutting down press conferences and the FSB and the Internal Affairs Ministry's Center for Combatting Extremism pressuring individual organization members to stop their activities.

During the year authorities used the country's law prohibiting the "propaganda" of nontraditional sexual orientations to minors to warn or prosecute media outlets that presented LGBT persons in a positive or neutral manner. On January 30, Aleksandr Sutin, editor in chief of the Khabarovsk regional newspaper *Molodoy Dalnevostok*, was fined 50,000 rubles (\$847) for publishing an article in September 2013 about a geography teacher and gay rights activist who stated that he was pressured into quitting his job and assaulted by neo-Nazis because of his sexuality.

Violence and Harassment: As of December 1, the Glasnost Defense Fund reported the following actions against journalists during the year: five killings, 52 attacks, 107 detentions by law enforcement, 200 prosecutions, 29 threats against journalists, and 15 politically motivated firings, as well as two attacks on media offices.

On August 5, the body of Nalchik-based correspondent Timur Kuashev, an affiliate of *Caucasian Knot* and the magazine *Dosh* was found in a wooded area near the suburb of Khasania, the day after he had gone missing following threats from law enforcement authorities. The *Dosh* editorial staff claimed Kuashev had been kidnapped from his home on August 4, but at the time of his burial, the results of an autopsy to determine the cause of his death were unknown. According to the media outlet's editor, Abdulla Duduyev, Kuashev was under surveillance and had regularly received threats for his coverage of alleged human rights abuses by security forces in the course of antiterrorism operations. At year's end no investigation had been opened into the killing.

There were no updates in the investigations into the 2013 deaths of journalists Akhmednabi Akhmednabiyev and Gadzhimurad Kamalov.

Often, when cases of violence against journalists involved government officials, the defendants were not prosecuted to the full extent of the law. For example, on January 16, the City Court of Tulun in Irkutsk Oblast found the former deputy mayor, Gennadiy Zhigarev, guilty of stabbing to death journalist Aleksandr Khodzinskiy in July 2013 but sentenced him to 22 months of house arrest instead of the minimum prison sentence of six years for murder prescribed by law.

Reports of physical assaults on journalists increased along with an increase in investigative reporting on the situation in Ukraine, according to NGO reports. On September 18, unknown persons attacked a BBC news crew in Astrakhan after they recorded interviews with families of the country's soldiers who reportedly had been killed in an unacknowledged military intervention in Ukraine. The assailants beat the crew members and smashed their video camera. The BBC crew contended that during the four-hour interview with police following the attack, someone further tampered with the camera and computer equipment in their car outside the police station.

At an April 4 hearing on the charges initiated in 2013 against journalist Sergey Reznik--including insulting a public official, bribery and deliberately misleading authorities--a Rostov court upheld Reznik's 18-month sentence. As of year's end, Reznik's legal team was in the process of filing an appeal with the Rostov Regional Court as well as the ECHR. Reporters without Borders noted numerous flaws in the case against him.

On February 6, Judge Valentina Levashova of the Basmannyy District Court of Moscow dismissed a motion by journalist Oleg Kashin to reopen a case against the FSB and Investigative Committee regarding their failure to investigate the 2010 attempt on his life. Levashova noted in her decision that the Investigative Committee's two years of inaction on the case were not inconsistent with the national criminal code and that Kashin had no grounds on which to bring a suit against the FSB.

On June 9, a Moscow court convicted five men for the 2006 murder of journalist Anna Politkovskaya and sentenced them to between 12 and 20 years in prison. Despite these convictions and the 2012 conviction of Dmitriy Pavlyuchenkov for organizing the murder, the identity of the person who ordered Politkovskaya's killing remained unknown.

There was no progress in establishing accountability in a number of high-profile killings of journalists, including the 2004 killing of Paul Klebnikov and the 2009 killing of Natalia Estemirova.

Journalists and bloggers who uncovered various forms of government malfeasance also faced harassment, either in the form of direct threats to their physical safety or threats to their security or livelihood, often through legal prosecution. For example, on March 3, officers from the Tomsk Investigative Department conducted a raid on the office of well-known opposition activist and reporter Andrey Volkov, supposedly to search for “extremist materials.” Both Volkov and his supporters publicly stated their belief that the raid and previous online surveillance of Volkov was in response to his February article in *novo-tomsk.ru* describing fraudulent investigative tactics in a case against three local youths accused of assaulting a prosecutor.

After six months of house arrest for alleged possession of drugs found during a routine traffic stop, authorities notified Sochi-based independent journalist Nikolai Yarst on March 17 that the case against him had been dismissed. Many human rights groups and other local journalists believed that police planted the drugs in the car in retaliation for Yarst’s critical reporting on a local scandal that implicated members of the Sochi police.

Censorship or Content Restrictions: The government continued to use legislation and decrees to curtail media freedom.

On March 12, Roskomnadzor, the state media authority, issued a warning against the popular independent media website *Lenta.ru*, which it accused of spreading “extremist” content after the editorial staff chose to publish an interview with Andrei Tarasenko, a leader of Right Sector, a Ukrainian nationalist group. Editor in chief Galina Timchenko and general director Yulia Minder were dismissed the same day by Aleksandr Mamut, the owner of *Lenta.ru*’s parent company. Sources close to the news organization noted that these actions were taken in connection with government attempts to control the website’s editorial policies.

On November 1, Roskomnadzor issued a warning pursuant to extremism legislation to Ekho Moskv, the independent radio station, over a program it broadcast that gave an account of fighting near the Donetsk airport in Ukraine. Without elaboration the warning accused Ekho Moskv of propagating “information which justifies the practice of war crimes.”

During the year courts used vague extremism laws to censor religious materials of minority religious groups. On January 13, a Kurgan court declared a series of Jehovah's Witnesses pamphlets to constitute extremist material. The court noted that the pamphlets such as *How to Achieve Happiness in Life* and *How to Develop a Close Relationship With God* discriminated against individuals who did not belong to the organization. The prosecutor's office declared that analyses by linguistic experts had concluded the brochures contained propaganda that promoted the superiority of the Jehovah's Witnesses and denigrated other faiths as false (see the Department of State's International Religious Freedom Report at www.state.gov/j/drl/irf/rpt/).

The government utilized these same antiextremism laws to censor an array of online content (see section 2.a., Internet Freedom).

Officials or unidentified individuals sometimes used force or took other extralegal measures to prevent the circulation of publications critical of government officials. The Glasnost Defense Fund reported that, as of September 1, officials made 29 attempts to seize or prevent distribution of publications. Utilizing the Law on Extremism as grounds, the government confiscated numerous materials from local and independent publishers. For example, on March 14, Kalmykia police detained the editor of *Modern Kalmykia*, Valeriy Badmayev, who was taken to the city police department and held overnight for allegedly threatening a local law enforcement official. After his arrest police confiscated the most recent print edition of *Modern Kalmykia* on the pretext that it contained "extremist materials," although authorities never specified which materials they considered extremist.

The Glasnost Defense Fund reported 51 instances of government interference with internet publications by December 1, compared with 44 instances for the entire year in 2013. There was a notable increase in the average number of instances of government interference in March and April, corresponding with Russia's invasion and purported "annexation" of Ukraine's Crimean peninsula.

On May 16, authorities in Kirov returned a print run of 80,000 newsletters created by supporters of opposition activist Aleksey Navalnyy that they seized in May 2013. After a year of examining the newsletters, authorities concluded that there was no extremist content in them.

During the year there were reports of courts forbidding high-profile journalists and bloggers from engaging in journalistic activity. On January 9, a court in Yekaterinburg issued a two-year suspended sentence to journalist and founder of

ura.ru, Aksana Panova, for extortion. In addition to the suspended jail sentence, the court prohibited Panova from engaging in journalistic activities for two years. Local media and human rights activists claimed this media gag order resulted from Panova's work to highlight government ineffectiveness as well as her close relationship to the mayor of Yekaterinburg, Yevgeny Roizman, a figure at times at odds with the government.

Libel Laws/National Security: Officials at all levels used their authority, sometimes publicly, to restrict the work of journalists and bloggers who criticized them, including taking legal action for alleged slander or libel. The law places limits on free expression on national security grounds, notably in statutes against extremism and treason.

Opposition activist and prominent anticorruption blogger Aleksey Navalnyy was the subject of multiple libel-related proceedings for statements he posted online. On April 22, the Babushkinskiy District Court decided one libel case in favor of Aleksey Lisovenko, a Moscow city lawmaker who claimed Navalnyy had called him a drug addict in a post on Twitter. In this suit, the court fined Navalnyy 300,000 rubles (\$5,085). On April 24, the Lublinskiy District Court in Moscow ordered Navalnyy to retract information posted on his *Fund for the Fight against Corruption* blog, which accused a United Russia Duma deputy, Sergey Neverov, of corruptly obtaining the money to build a country home. On June 12, the deputy mayor of Moscow, Maksim Liksutov, filed a libel suit against Navalnyy, claiming that his writings about Liksutov's alleged shadow businesses in Cyprus were "lies that hurt (his) dignity and honor." On June 30, the Lublinskiy District Court again found against Navalnyy in a suit initiated by the chairman of the State Duma Committee on Economic Policy, Igor Rudinskiy, and ordered Navalnyy to retract information posted about corrupt real estate financing on his blog.

Internet Freedom

The government took significant new steps to restrict free expression on the internet. Threats to internet freedom included physical attacks on bloggers; politically motivated prosecutions of bloggers for "extremism," libel, or other crimes; blocking of specific sites by national and local service providers; distributed denial-of-service attacks on sites of opposition groups or independent media; monitoring by authorities of all internet communications; and attempts by national, local, and regional authorities to regulate and criminalize content. The internet was widely available to citizens in all parts of the country, although

connection speeds varied by region. According to Internet World Stats, almost 50 percent of the country's population had internet access.

New laws placed additional restrictions on internet freedom. On September 24, the president signed a law, effective at the beginning of 2015, requiring that data servers for e-mail and social networking sites be kept on the country's territory.

On May 6, the president signed a new law requiring all bloggers whose websites receive more than 3,000 unique visits per day to register as "mass media outlets" with all the corresponding responsibilities. On December 12, the editor of Echo Moskvyy, Alexei Venedictov, and several other popular bloggers received a notice from Roskomnadzor asking them to register as mass media outlets. It was not known at year's end if they complied.

According to human rights organization Agora's *2013 Freedom of the Internet* report released in February, the country's online environment had "considerably worsened," and it noted that a record number of bloggers and journalists were arrested, beaten, threatened, and censored in 2013. The report indicated a significant increase in the number of violent attacks on journalists, as well as a three-fold increase in the number of journalists that authorities brought to criminal and civil courts due to the content of their work. Agora also noted an increase in the number of cyberattacks on journalist and activist websites, from 47 in 2012 to 63 in 2013.

The state mass communications watchdog agency Roskomnadzor maintained a federal blacklist of internet sites. Roskomnadzor required internet service providers (ISPs) to block access to web pages that the agency deemed offensive or illegal, including information that was already prohibited, such as items on the *Federal List of Extremist Materials*. The law gives the prosecutor general and Roskomnadzor authority to demand that ISPs block websites that promote "extremist" information or "mass public events that are conducted in violation of appropriate procedures." Roskomnadzor held blog owners responsible for the content in the comments section of their pages.

During the year authorities blocked the websites of major national independent news media and social network pages that criticized government policy. For example, on February 2, Roskomnadzor blocked four websites, including the blogging platform LiveJournal, after new amendments came into force that allowed them to cut off public access to online sources suspected of extremism without a court sanction. On March 13, Roskomnadzor temporarily shut access to

four websites as well as the blog of opposition leader Aleksey Navalnyy to impede efforts to hold unsanctioned rallies to protest the country's military intervention in Ukraine and its purported "annexation" of Ukraine's Crimean peninsula. On April 28, Roskomnadzor blocked 10 Ukrainian websites "calling for mass protests in Russia." The sites remained blocked at year's end.

On April 22, Pavel Durov, founder of social network VKontakte, announced that he had fled the country due to pressure from the government. The previous day, April 21, Durov had been forced out as the company's chief executive for refusing to share users' personal data with law enforcement agencies. In the months leading up to his departure, FSB officials had requested on numerous occasions that Durov release information on the identities of both Ukrainian and Russian Euromaidan activists stored on VKontakte's servers. He also refused a request from the Prosecutor General's Office to shut down a group page dedicated to opposition activist Aleksey Navalnyy. Five months after Durov fled, the government-owned website Mail.ru purchased a controlling interest in VKontakte.

In many regions local prosecutors' offices and courts ordered ISPs to block content on the *Federal List of Extremist Materials* and the federal internet blacklist.

During the year authorities prosecuted individual bloggers for allegedly "extremist" content they published online. Hearings continued in the 2013 extremism case of Murmansk Oblast blogger, Aleksandr Serebrynikov, the owner of the online news agency Blogger 51, which was critical of the Murmansk regional government. The case was transferred to Oktyabr'skiy District Court in May, but the court ruled to return it to the Investigative Committee for additional investigation. In July, however, Murmansk Oblast Court cancelled this ruling and returned the case to the district court for hearing. The hearing was scheduled for October 6 but was again postponed.

The government targeted organizations, especially NGOs and human rights defenders, that published information online about the government's activities in Ukraine. For example, on September 13, the St. Petersburg Soldiers' Mothers organization announced it would move its servers offshore after the Ministry of Justice labeled the organization a "foreign agent" and continued to target its website's editors with hacking attacks as well as threats of physical violence. The organization cited fear of government infringement of their online database as the reason for moving their servers offshore, as well as concern that government authorities could access information regarding donors, supporters, and cases in progress.

There were multiple reports that authorities fined libraries, schools, and internet clubs during the year for failing to block adequately content listed on the *Federal List of Extremist Materials* or covered under the law defending children from harmful information. In one case, on June 20, local authorities filed charges against a Yekaterinburg secondary school director on the grounds that the content filters installed on the school computers did not provide complete protection against access to prohibited information, including extremist materials. The case continued at the end of the year.

The government continued to employ a “system for operational investigative measures” (SORM), which requires ISPs to install, at their own expense, a device that routes all customer traffic to an FSB terminal. The system enables police to track private e-mail communications, identify internet users, and monitor their internet activity.

Academic Freedom and Cultural Events

There were indications that the government took new steps to restrict academic and cultural freedom.

There were multiple cases of authorities opening criminal investigations against university professors whose writings criticized government policy, and in some cases firing them. For example, on October 1, religion professor Nikolay Karpitskiy from Yugra State University, in Khanty-Mansiysk, was informed that university management had reversed its earlier decision to extend his employment contract. While the university gave no formal notice of the reason for his dismissal, Karpitskiy told local media that his firing probably resulted from his participation in an academic conference on religious issues in Ukraine, since the administration had warned him that his participation in the conference would endanger his position at the university.

Authorities often censored or shut down cultural events or displays that they considered offensive, or that expressed views in opposition to the government, and in some cases initiated criminal proceedings against organizers. On March 20, the popular music group Lyapis Trubetskoy was forced to return home to Minsk, Belarus, after authorities banned it from playing at multiple venues in Tyumen. The group had been touring the country, played a sold-out concert in Yekaterinburg, and had already sold 600 tickets for the Tyumen venue, but

authorities objected to their lyrics--described by Tyumen city council members as “pro-revolution”--and banned the group as a “security precaution.”

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly, but local authorities increasingly restricted this right. The law requires organizers of public meetings, demonstrations, or marches by more than one person to notify the government, although authorities maintained that protest organizers must receive government permission, not just provide notification. Failure to obtain official permission to hold a protest resulted in the demonstration being viewed as “unlawful” by law enforcement officials, who routinely dispersed such protests. While numerous public demonstrations took place, on many occasions local officials selectively denied groups permission to assemble or offered alternate venues that were inconveniently or remotely located. The law provides heavy penalties for engaging in unsanctioned protests and other violations of the law on public assembly, up to 300,000 rubles (\$5,085) for individuals, 600,000 rubles (\$10,170) for organizers, and one million rubles (\$16,950) for groups or companies.

On July 26, the government enacted legislation that toughened punishment for “mass rioting,” under the Law on Meetings, which includes teaching and learning about organization of and participation in “mass riots.” In the same legislative action, the government also increased fines for violating protest regulations and rules on holding public events and separately introduced a law prohibiting nighttime demonstrations and meetings.

Police often broke up demonstrations that were not officially sanctioned and at times used disproportionate force when doing so. According to a June report from Amnesty International, between February 21 and March 4, authorities arrested more than 1,000 peaceful protesters and onlookers in Moscow alone. Authorities charged at least 500 of these with participating in an unauthorized gathering and/or failure to comply with police orders. From February 21 to 24, police arrested dozens of peaceful observers gathered outside the Zamoskvoretskiy District Court during the reading of verdicts for eight defendants in the Bolotnaya Square case. On February 21, authorities detained one of the arrested individuals, Grigoriy Tuboltsev, on charges that he had shouted slogans and actively resisted arrest. Tuboltsev later told Amnesty International that he was standing in front of the court and talking to his friend, neither holding a placard nor shouting slogans.

On December 30, between 2,000 and 5,000 demonstrators gathered at Manezh Square near Red Square to protest the verdicts against opposition activist Aleksey Navalnyy and his brother Oleg on fraud charges. Due to the haste of the verdict's announcement (moved from January 15, 2015, to December 30, 2014, with one day's notice), protesters were unable to provide the necessary notification to authorities for the demonstration. As such, authorities dispersed demonstrators after an hour. NGOs reported authorities arrested 255 demonstrators.

A February 17 HRW report analyzing government activities during the Sochi Winter Olympics noted that on February 7-9, authorities detained dozens of peaceful demonstrators in Moscow, St. Petersburg, and Nalchik. Participants in most of the planned protests told HRW that police had been waiting for them and prevented their public events from taking place. For example, on February 7, police arrested Anastasia Smirnova, the coordinator of a number of LGBT organizations, while she and a number of fellow activists were attempting to take photographs with a banner reading, "Discrimination is incompatible with belonging to the Olympic movement. Principle 6 of the Olympic Charter." The majority of activists spent three to four hours in police stations; others were detained for longer periods, often without food or water. Police charged all those detained with administrative offenses.

Crackdowns on civic activists near the time of the Sochi Olympics were particularly harsh in the North Caucasus, especially in the bordering region of Kabardino-Balkaria. On February 7, police in Nalchik, Kabardino-Balkaria, violently dispersed a peaceful protest organized via Facebook by Circassian activists. According to the Jamestown Foundation, authorities arrested 37 protesters and confiscated their flags and banners, some reading "Sochi Is the Land of Genocide." One day before the start of the Olympics, the Facebook group announced the same protest would take place in the central part of Nalchik at noon. The protesters managed to line up their cars with Circassian flags and posters, but police soon interrupted the demonstration and began arresting participants. Video posted on the group's Facebook page after the event indicted the gathering was peaceful.

In what HRW characterized on March 19 as a "post-Sochi crackdown," government officials detained hundreds of protesters in late February and early March during protests against the parliament's approval of military intervention in Ukraine and during small demonstrations and other gatherings to support the Bolotnaya Square defendants. The same HRW report noted that in most of the

1,264 arrests in Moscow of peaceful protesters between February 21 and March 4, police either were not wearing their identity badges or did not have their badges visible, in apparent violation of police regulations. Police refused to identify themselves or explain to protesters why they were being detained. The majority of those detained received a citation for participation in an unauthorized gathering, punishable with a fine of 30,000 rubles (\$510). Authorities charged others with disobeying police orders, which carries a punishment of up to 1,000 rubles (\$17), and sentenced 27 to administrative detention of up to 15 days.

Authorities began to restrict “single-person pickets,” which had generally been allowed to occur unimpeded in previous years. On March 30, police arrested three activists--Sergei Yakovlev, Dmitriy Zvorykin, and Mark Galperin--on Tverskaya Street in central Moscow, while they were holding portraits of Ukrainian protesters killed in Kyiv in February. The three activists had positioned themselves 50 yards apart to comply with the regulation on single-person picketing. Police held all three activists in a nearby police station and later released them without charge. The activists reported to Amnesty International that police could not find any violations of the law in their actions.

According to news reports, authorities opened “extremism” investigations into more than 30 Russian citizens who allegedly participated in the Euromaidan protests in Kyiv. A February 25 report from *NewsRu.com* noted that police received a list from intelligence officials that contained the names of 32 activists and opposition politicians from organizations such as the National Socialist Initiative, the Republican Party of Russia-Party of People’s Freedom, and the National Democratic Party who allegedly traveled to Kyiv to participate in protests on February 8. The list contained the names and residential addresses of the individuals, and authorities reportedly instructed police to check on the ones the government had labeled as “most active.”

Authorities took additional steps to deprive LGBT individuals and their supporters of free assembly rights. Despite an October 25 Supreme Court ruling that LGBT individuals are a “protected class” and should be allowed to engage in public activities, Moscow authorities on October 26 again barred a group of Moscow-based LGBT organizations from holding a gay pride march.

The national ban on the so-called propaganda of homosexuality to minors provided grounds to deny the assembly rights of LGBT activists and their supporters (see sections 2.a. and 6). Upheld by the Constitutional Court on September 25, this legislation was used on multiple occasions to interrupt public demonstrations by

LGBT activists. For example, on February 7, Moscow police detained but did not charge 10 LGBT activists on Red Square who unfurled rainbow flags and attempted to sing the national anthem during the Olympic opening ceremonies. Police also used unnecessary force in making arrests. One of the arrested activists, a young woman, noted to media that a police officer hit her in the face and split her lip, while her colleagues were handcuffed to the bars of their detention cells.

There were multiple reports of authorities pressuring employees of government enterprises or service sectors to take part in demonstrations in support of government policies. For example, on September 27, Moscow city authorities organized a half-hour gathering intended as a response to the September 21 Moscow Peace March, in which media reports estimated more than 30,000 persons participated. The media reported authorities pressured members of trade unions and state employees to attend in order to swell participation numbers.

Freedom of Association

The law provides for freedom of association. During the year, however, the government instituted new measures and used existing restrictive laws to stigmatize, harass, fine, close, and otherwise raise barriers to membership in organizations that were critical of the government.

Public organizations must register their bylaws and the names of their leaders with the Ministry of Justice. The finances of registered organizations were subject to investigation by tax authorities, and foreign grants had to be registered.

The government used 2012 laws--requiring NGOs that receive foreign funding and engage in "political activity" to register as "foreign agents"--to harass, stigmatize, and in some cases halt the operation of NGOs. Large-scale searches under the "foreign agent" law began in March 2013 and continued. According to HRW, while authorities inspected a wide range of civil society groups from nearly every region of the country, groups that were warned, fined, or prosecuted generally were those that were active in areas such as election monitoring, human rights advocacy, anticorruption work, and environmental protection. During inspections, law enforcement agencies typically brought representatives from as many as a dozen different bodies to issue citations to NGOs, including fire inspectors, tax inspectors, and health and safety inspectors.

HRW and other observers noted that a wide range of NGO activity was considered "political," including providing information to UN bodies, publishing public

opinion poll results, providing legal advice to abuse victims, or holding roundtables or seminars to discuss policy matters.

Organizations the government deemed to be “foreign agents” reported experiencing the social effects of stigmatization, such as being targeted by vandals, in addition to losing collaborators and funding sources and being subjected to smear campaigns in the state-controlled press.

The original “foreign agent” amendments to the NGO law authorized the Ministry of Justice and local authorities to require NGOs to self-register only after court proceedings had found them to be “foreign agents.” On June 4, however, President Putin signed into law amendments that allow the Ministry of Justice to register independent groups as “foreign agents” without their consent. During the year the Ministry of Justice unilaterally placed 28 NGOs on the list of “foreign agents.” By year’s end the Ministry of Justice had provided no comprehensive definition of the “political activities” that result in an NGO being listed as a “foreign agent,” nor had it provided any procedure by which an NGO could be removed from the list.

NGOs engaged in “political activities” or in activities that “pose a threat to the country” that receive support from U.S. persons or organizations are also subject to suspension under the “Dima Yakovlev” law, which prohibits NGOs from having dual Russian-U.S. citizen members.

Some groups that opposed powerful business interests faced intimidation from government and private security forces. Local authorities routinely harassed members of environmental NGOs and journalists who criticized or otherwise reported on problems associated with the preparations for the Sochi Olympics.

There were multiple reports that activists were beaten or attacked in retaliation for their professional activities and that law enforcement officials did not adequately investigate the incidents. For example, HRW reported a February 12 arson attack on Igor Sazhin, a prominent human rights defender in Syktyvkar, the capital of the Komi Region. After a May 2013 attack by ultranationalist organization Northern Frontier on the Komi human rights committee Memorial, social network postings from Northern Frontier led Sazhin to suspect that the group was behind the attack on him as well. Police refused to open an investigation into the February 12 attack.

There were multiple reports of activists and human rights defenders receiving threats of physical violence in connection with their activity. Human rights lawyers Sapiyat Magomedova and Musa Suslanov in Dagestan noted to Amnesty

International that they faced increasingly intense, anonymous death threats in connection with their investigation into 2012 killings of five men in Dagestan.

There were multiple cases in which authorities arbitrarily arrested and prosecuted civil society activists in political retaliation for their work (see sections 1.d. and 1.e.).

NGOs and activists representing the LGBT community were targeted for retaliation. On April 14, local authorities in Arkhangelsk brought charges against Oleg Klyuyenkov, a prominent human rights defender from the Arkhangelsk LGBT rights organization Rakurs, for his work promoting LGBT rights in the country. The FSB investigated Klyuyenkov after he took a trip in 2013 to meet with citizens of Arkhangelsk's sister city of Portland, Maine, and other foreign officials in Washington, D.C. The director of the university informed Klyuyenkov that the FSB and a local prosecutor were demanding disciplinary action for the trip. Citing violations of the labor code concerning absenteeism, the university asked Klyuyenkov for his resignation, and he complied.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation. With the exception of Ukrainian refugees, who as a group were well received, the government provided minimal assistance to refugees, asylum seekers, stateless persons, and other persons of concern. The government seldom cooperated on asylum and refugee issues with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations.

Although the law gives citizens the right to choose their place of residence, all adult citizens must carry government-issued internal passports while traveling domestically and must register with local authorities after arriving at a new location. Those with official refugee or asylum status must request permission to relocate to a district other than the one that originally granted them their status. Authorities often refused to provide government services to individuals without internal passports or proper registration, and many regional governments continued

to restrict this right through residential registration rules that closely resembled Soviet-era regulations.

Officials often singled out persons with dark complexions from the Caucasus as well as individuals who appeared to be of African or Asian origin for document checks. There were credible reports that police arbitrarily imposed fines on unregistered persons in excess of legal requirements or demanded bribes.

In-country Travel: Authorities require intercity travelers to show their internal passports when buying tickets to travel via air, railroad, water, or road. There were significant travel restrictions imposed on certain populations in connection with the February Olympic Games in Sochi. For example, on January 29, the human rights center Memorial reported police in Dagestan had compiled lists of Salafi Muslims and required persons on such lists to notify authorities three days prior to their intended travel outside the republic. The proposed travelers had to include on the notification form the purpose of travel, type of transportation to be used, and whether they would have any other persons traveling with them. Dagestani authorities, when questioned by *Caucasian Knot*, said the regulation was imposed as a security measure for the Winter Olympics.

The government's Winter Olympics security procedures involved a zoning system, which allowed entry to Olympic venues only to individuals with tickets and identification and restricted entry into most of the city of Sochi. Authorities detained and fined persons who violated movement restrictions. The media reported dozens of cases of Olympic guests who were fined for their movement in Sochi, although no outlets carried a final tally of arrests and fines for violating such restrictions.

Authorities imposed travel restrictions on individuals facing prosecution for political purposes. There were multiple reports of authorities detaining human rights activists and independent journalists at length for questioning at airports.

Foreign Travel: The law provides for freedom to travel abroad, but the government introduced new restrictions on this right during the year. According to press reports, in April the government banned all foreign travel by approximately five million employees of the government, mostly from the security services. This includes employees of the Prosecutor General's Office, the Ministry of Internal Affairs, the Ministry of Defense, the Federal Prison Service, the Federal Drug Control Service, the Federal Bailiff Service, the Federal Migration Service, and the Ministry of Emergency Situations.

The law on procedures for departing from and entering the country stipulate that a person who has violated a court decision has no right to leave the country. A court can prohibit a person from leaving the country for failure to satisfy debts if the individual is suspected, accused, or convicted of a crime, or if the individual has access to classified material.

In several instances authorities prevented individuals who were critical of the government or who were planning to attend events of which the government did not approve from leaving the country. Several delegates to the UN World Conference on Indigenous Peoples--representing indigenous people from the Arctic, Siberia, and the Far East--were subject to attempts to prevent them from attending the high-level meeting in New York in September. Authorities stopped indigenous-rights leader Rodion Sulyandziga, director of the Center for the Support of Indigenous Peoples, at Moscow's Sheremetyevo Airport and prevented him from boarding a plane to New York on grounds that his passport was missing a page and was therefore invalid. Sulyandziga reported he had handed immigration officials a complete passport without any missing pages and that the officials had intentionally damaged it.

In other cases authorities acted to prevent the return of government critics from abroad. For example, according to October 31 press reports, the country's embassy in the United Kingdom refused to renew the passport of Vladimir Bukovskiy, a Soviet-era dissident and critic of the present government, who had lived abroad for 12 years. According to Bukovskiy the refusal to renew his passport was in retaliation for his political views.

Exile: There were many high-profile cases of self-imposed exile during the year, primarily involving leaders of political opposition movements, NGOs, environmental organizations, and protesters who feared reprisals for their participation in anti-Putin demonstrations or for their opposition activities.

According to UN statistics, the number of citizens who sought protected status abroad had almost doubled since 2012. According to UNHCR statistics, as of January nearly 75,000 persons were seeking refugee status and 26,000 persons were seeking asylum in other countries. The majority of these persons were ethnic Chechens seeking protection in Germany.

Internally Displaced Persons (IDPs)

The UNHCR *Global Report 2011* placed the number of IDPs in the country at 28,500. In 2013 the Internal Displacement Monitoring Center reported that at least 29,000 IDPs remained in the North Caucasus as a result of wars in Chechnya in the 1990s. The situation for the IDPs displaced after the wars in Chechnya remained poor, with the majority still living in substandard accommodations without proper sanitation and electricity.

Protection of Refugees

Access to Asylum: The country's laws provide for the granting of asylum or refugee status, and the government has established a system for providing protection to refugees. NGOs reported applicants commonly paid informal "facilitation fees" of approximately \$500 to Federal Migration Service adjudicators to have their application reviewed. Applicants who did not speak Russian had to pay for a private interpreter. Human rights organizations noted newly arrived refugees and temporary asylum seekers in large cities, in particular Moscow and St. Petersburg, were forced to apply in other regions, allegedly due to full quotas. With the exception of Ukrainians, the Federal Migration Service approved a small percentage of applications for refugee status and temporary asylum.

Some observers pointed out that Federal Migration Service data failed to include asylum seekers who were forcibly deported or extradited before exhausting their legal remedies. Some asylum seekers, especially those from Central Asia, also reportedly chose not to make formal applications for asylum because doing so often led to criminal investigations and other unwanted attention from the security services.

Human rights organizations criticized the country's reported preferential treatment of Ukrainian applicants for refugee status and temporary asylum. According to the UNHCR, authorities prioritized Ukrainian nationals over other nationalities and were more likely to approve their applications, resulting in longer waiting periods and fewer approvals for non-Ukrainian applicants. The government issued a decree in July that expedited the processing of temporary asylum and refugee applications for Ukrainian nationals, and authorities extended the visa-free period Ukrainian citizens could stay in the country to 270 days (three periods of 90 days each without the need to leave and return to the country). These changes did not apply to other nationalities. Federal Migration Service data showed that during the year, officials granted 95 percent of Ukrainians temporary asylum and 2.8 percent refugee status. For non-Ukrainian nationals, the rates in 2012 were 66 percent and

8 percent, respectively. Authorities did not release public data on non-Ukrainian refugees for the 2013-14 calendar years.

Refoulement: The government provided some protection against the expulsion or return of persons to countries where their lives or freedom would be threatened on account of their race, religion, nationality, membership in a particular social group, or political opinion. The responsible agency, the Federal Migration Service, did not maintain a presence at airports or other border points and did not adequately publicize that asylum seekers had the ability to request access to the agency. Asylum seekers had to rely on the goodwill of border guards and airline personnel to call immigration officials. Otherwise, they faced immediate return to their countries of origin, including in some cases to countries where they had reasonable grounds to fear persecution.

By law an applicant may appeal the decision of a Federal Migration Service official to a higher-ranking authority or to a court. During the appeal process, the applicant receives the rights of a person whose application for refugee status was being considered.

Human rights groups continued to allege that authorities made improper use of international agreements that permitted them to detain, and possibly repatriate, persons with outstanding arrest warrants from other former Soviet states. This system, enforced by informal ties between senior law enforcement officials of the countries concerned, permitted authorities to detain individuals for up to one month while the Prosecutor General's Office investigated the nature of the warrants. The UNHCR and human rights groups noted with concern several cases of disappearances and extralegal return of persons of UNHCR concern, in which officials detained individuals (most commonly from Central Asia) and returned them to their country of origin clandestinely. Rights groups and the UNHCR maintained that this could not have happened without the cooperation of several different federal agencies (see section 1.b.).

Refugee Abuse: The UNHCR and NGOs stated that police at times detained, fined, and threatened asylum seekers with deportation and that citizens subjected them to racially motivated assaults.

Access to Basic Services: For asylum seekers allowed into the country to pursue their claims, the refugee law provides the right to temporary accommodations. Before the country's military intervention in Ukraine, there were three official reception facilities. Since then the government opened more than 900 temporary

centers for Ukrainian refugees, in addition to an unknown number of summer camps, sanitariums, dorms, and hotels. According to UNHCR officials who visited these centers, authorities met the basic needs of Ukrainian refugees, in addition to providing medical care and schooling. NGOs reported authorities did not provide these types of services to refugees/asylum seekers from other countries.

While federal law provides for education for all children, regional authorities occasionally denied access to schools to children of asylum seekers who lacked residential registration. When parents encountered difficulties enrolling their children in schools, authorities generally cooperated with the UNHCR to resolve the problem. Authorities frequently denied migrants the right to work if they did not have residential registration. In May, President Putin signed a federal law granting refugees and temporary asylees the opportunity to work in the country without obtaining special job permits.

Temporary Protection: A person who did not satisfy the criteria for refugee status, but who could not be expelled or deported for humanitarian reasons, could receive temporary asylum after submitting a separate application.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

While the law provides citizens with the ability to change their government peacefully in regularly scheduled national and regional elections, citizens could not fully do so because the government limited the ability of opposition parties to organize, register candidates for public office, access the media, and conduct political campaigns.

In May, President Putin signed legislation allowing regional authorities to abolish mayoral elections in many major cities. The law excludes Moscow and St. Petersburg, since by law the mayors of these cities have the status of governors of “subjects” of the country. Regional authorities were to select one of four approved models of local governance--without the consent of voters--by November. According to domestic media, 66 of 83 regions abandoned mayoral elections, leaving only 14 of 80 administrative centers where citizens directly elect their mayor. In December the Yaroslavl regional Duma voted to eliminate mayoral elections in the cities of Yaroslavl and Ribinsk despite local protests and public polling showing the majority of residents wanted to keep direct mayoral elections.

In February the State Duma passed a bill establishing a mixed electoral system in which half of the State Duma (lower house) deputies are elected in single-mandate constituencies and half are elected from party lists. The legislation also sets filters that prevent many small but legally registered parties from competing for party-list seats. The only parties that do not have to collect signatures to participate in elections are those parties that passed the 5 percent threshold to win seats in the last Duma election, parties that received at least 3 percent support in the previous Duma election, or parties represented in at least one regional legislature. Media outlets reported only 12 of the more than 70 registered political parties would be able to participate in the Duma elections today under these rules. All other parties that wish to compete for party-list seats in the Duma must gather at least 200,000 signatures from voters, including no more than 7,000 signatures from any one region. Smaller parties could participate in single constituencies even if they were not from a registered political party, provided they collected at least 3 percent of the signatures of voters registered in their districts or at least 3,000 signatures, whichever number is higher. The new election format was scheduled to take effect during the next Duma election cycle, scheduled for 2016.

Elections and Political Participation

Recent Elections: On September 14, the country held elections to select, among other offices, 30 governors and 14 regional legislatures. The elections proceeded smoothly, with fewer allegations of voter fraud than in previous ones, although observers noted that the most viable opposition candidates had been denied places on the ballot long before the vote.

Golos, the premier citizen-organized election monitoring organization, alleged there were a number of violations on election day, including stuffed ballot boxes in the Moscow suburbs of Balashikha, Zhukovskiy, Odintsovo, and Korolev, and that the turnout numbers for voters was artificially inflated in Moscow and St. Petersburg. In St. Petersburg, nearly 25 percent of votes were cast through absentee ballots, raising questions about the veracity of the vote. Independent bloggers also reported on widespread irregularities in the North Caucasus.

Golos volunteers were prohibited from election observation in the Moscow suburb of Zhukovskiy. The organization, which had planned to observe elections in 20 regions, also received sufficiently serious threats in the Tyumen Region that it cancelled plans to observe there.

In the period preceding the elections, the government used “municipal filters”--a requirement that a candidate gather the support of 5 to 10 percent of municipal lawmakers, who in many cases all belonged to the ruling United Russia party--to disqualify gubernatorial or regional legislative candidates from registering for the elections. The government also used other tactics throughout the campaign to prevent a level playing field, such as denying applications for opposition rallies, controlling opposition candidates’ mass media coverage, and distributing gifts to potential voters to promote the victory of government-backed candidates in nearly all regions.

Opposition candidates had difficulty accessing traditional media. Many opposition candidates relied on Facebook, Twitter, and VKontakte to connect with voters, since the state-controlled print and television media did not cover their campaigns.

The Office for Democratic Institutions and Human Rights (ODIHR) of the Organization for Security and Cooperation in Europe (OSCE) documented fraud and irregularities in the March 2012 presidential elections in many regions, particularly in the North Caucasus. Prior to the election, independent observers, the media, and opposition parties reported widespread irregularities, including abuse of administrative resources to pressure students, state budget employees, employees of state-owned companies, and others to vote for the ruling party, United Russia. According to the ODIHR, all contestants on the ballot were able to campaign unhindered and had access to media, but candidate Vladimir Putin, then the prime minister, had an advantage in the coverage. Various public institutions instructed their subordinate structures to organize and facilitate Putin’s campaign events. Local authorities also used official communications, such as their institutional websites and newspapers, to facilitate his campaign. At the same time, there were multiple reports of stories, television infomercials, and radio programs commissioned to convince citizens the elections would be unbiased and impossible to falsify.

Political Parties and Political Participation: A 2012 law liberalized registration requirements for political parties, reducing the number of members a party must have to register from 45,000 to 500 and abolishing the requirement for parties to collect voter signatures to take part in elections. At year’s end 77 parties had obtained registration, up from 73 in 2013. New laws on the makeup of the State Duma, however, set out strict signature requirements that realistically limited the number of parties that could participate in legislative elections.

The Ministry of Justice denied registration to several parties that supported opposition leader Aleksey Navalnyy, including the People's Alliance Party and the December 5th Party. In May the ministry suspended the registration of the People's Alliance Party, supposedly due to concerns that the name was too similar to the name of the Alliance of the Greens-People's Party. On October 6, the December 5th Party resubmitted documents for registration.

The law requires gubernatorial candidates not nominated by a registered political party to secure the support of 5 to 10 percent of local deputies, a requirement known as the "municipal filter." These signatures must be collected in no fewer than 75 percent of municipal councils. Gubernatorial candidates nominated by registered political parties are not required to collect signatures from members of the public, although self-nominated candidates must do so.

While parties represented in the State Duma may nominate a presidential candidate without having to collect and submit signatures, prospective presidential candidates from parties without Duma representation must collect two million signatures from supporters throughout the country. The candidates must submit the signatures to the Central Electoral Commission for certification. An independent candidate is ineligible to run if the commission finds more than 5 percent of the signatures to be invalid.

The law prohibits negative campaigning and provides criteria for removing candidates from the ballot, including for vaguely defined "extremist" behavior. The executive branch and the prosecutor general have broad powers to regulate, investigate, and disqualify political parties. Other provisions limit campaign spending, set specific campaign periods, and provide for restrictions on campaign materials.

Once elected, many opposition politicians reported efforts by the ruling party to undermine their work or remove them from office. According to press reports, in the period 2007-11, approximately 90 percent of mayors elected from parties other than United Russia, or more than 20 individuals, were removed from office and prosecuted. As of October the opposition mayor of Yaroslavl, Yevgeny Urlashov, whom authorities arrested in 2013 on charges of embezzlement, remained under house arrest awaiting trial.

Leaders and members of opposition parties faced prosecution or other forms of retaliation. At year's end the heads of three major independent opposition parties were in state custody in connection with criminal cases, including Aleksey

Navalnyy of the Party of Progress, Sergei Udaltsov of Left Front, and Gleb Fetisov of the Green Alliance.

Participation of Women and Minorities: There were 60 women in the 450-member State Duma and 11 women in the 166-member Federation Council, including Chairwoman Valentina Matviyenko. One of the seven deputy prime ministers was a woman, as was one of the 24 cabinet ministers and three of the 83 regional leaders. Three of the 19 judges on the Constitutional Court were women. Women led seven political parties, and two other parties had female cochair.

Information on the ethnic composition of the State Duma and the Federation Council was not available. While members of national minorities took an active part in political life, ethnic Russians, who constituted approximately 80 percent of the population, dominated the political and administrative system, particularly at the federal level.

Section 4. Official Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, but the government acknowledged difficulty enforcing the law effectively, and officials often engaged in corrupt practices with impunity. The *Global Competitiveness Report 2013-14* compiled by the World Economic Forum cited corruption as the most problematic, high-risk factor for doing business in the country.

Corruption was widespread throughout the executive, legislative, and judicial branches at all levels of government. Its manifestations included bribery of officials, misuse of budgetary resources, theft of government property, kickbacks in the procurement process, extortion, and improper use of official position to secure personal profits. While there were prosecutions for bribery, a general lack of enforcement remained a problem. Official corruption continued to be rampant in numerous areas, including education, military conscription, health care, commerce, housing, social welfare, law enforcement, and the judicial system. According to the OECD 2013 economic survey on the country, cases against law enforcement accounted for a quarter of all corruption court cases in 2012, and 90 percent of entrepreneurs reported having encountered corruption at least once.

Corruption: Prosecutors charged high-level officials with corruption during the year, but most government anticorruption campaigns were limited in scope and focused on lower-level officials. Authorities also used allegations of corruption as

a political tactic. The areas of spending that ranked highest in corruption were public procurement, media, national defense, and public utilities.

The OECD's 2013 economic survey noted that "bribery in some regions is so widespread that local firms are reported to consider it a convenient alternative to legal and administrative compliance." According to a January 4 report released in *Kommersant*, the most corrupt regions of the country in 2013 were Chechnya, Dagestan, Chukotka, North Ossetia, Novgorod, and Tyumen regions. Moscow ranked 11th and St. Petersburg ranked 22nd.

According to the Ministry of Internal Affairs, the average bribe for all purposes in 2013 was approximately 145,000 rubles (\$2,460), more than double the 2012 average of 58,000 rubles (\$985). The most commonly cited instances of corruption during the year related to construction projects for the Sochi Winter Olympics. The reported cost to the state of the event more than quadrupled, from an initial estimate of \$12 billion to \$50 billion. Bloomberg reported that overall, the average construction project in Sochi experienced cost overruns of 180 percent, much of which allegedly went to corruption. Observers estimated that the government spent more than 305 billion rubles (\$5.17 billion) to construct the new road and railway to the Krasnaya Polyana mountain resort, which hosted the ski and snowboard events. On January 14, a member of the International Olympic Committee estimated that approximately a third of the country's budget for the Olympics had been lost to corruption.

On February 5, FSB investigators from the Center for Extremism searched the home of Alexander Sokolov, a graduate student at the Academy of Sciences who had published a thesis on corruption associated with the Sochi Winter Olympics. Police seized books and computer equipment, claiming Sokolov was under investigation in an extremism case.

During the year authorities prosecuted anticorruption blogger and opposition leader Aleksey Navalny several times in apparent retaliation for his work exposing corruption (see sections 2.a. and 1.e.).

There was no specific anticorruption agency with competence to investigate and prosecute corruption in the country. The FSB and the Prosecutor General's Office are responsible for fighting corruption. Almost all law enforcement agencies had departments to deal with internal corruption. The Federal Finance Monitoring Service (Rosfinmonitoring) monitored financial transactions in the country, while the Federal Accounting Chamber oversaw the handling of federal assets. The

Ministry of Economic Development contributed to anticorruption proposals and their implementation and conducted research on corruption and countermeasures. The Investigative Committee was the main federal investigating body in the country.

According to Aleksandr Bastrykin, head of the Federal Investigative Committee, the committee investigated 2,463 cases of persons with special legal status in 2014, including 1,692 deputies and elected heads of government, 53 legislators of the Federation, 16 judges, 60 prosecutors, and 216 lawyers. Criminal proceedings were filed against 27 investigators representing drug control authorities and 42 officers of the Investigative Committee.

Financial Disclosure: The law prohibits state officials and heads of state-owned enterprises from owning financial assets or bank accounts abroad. The law also requires politicians to file extensive declarations of all foreign real estate owned. The law requires civil servants to declare any large expenditures involving land, vehicles, and securities, as well as their incomes.

The law requires government officials to submit financial statements, restricts their employment at entities where they had prior connections, and requires reporting of actual or possible corrupt activity. The information that officials provided often did not reflect their true income or that of close family members.

Public Access to Information: The law authorizes public access to government information unless it is confidential or classified as a state secret. The law requires placement of information regarding activities of federal executive agencies on the internet. According to the Open Knowledge Foundation, however, government agencies published less than half of the information that the law requires them to make available on the internet, and courts, despite the presumption of openness, denied citizens' requests for information on the ground that the information requested did not directly affect their interests.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups operated in the country, investigating and publicly commenting on human rights problems. Official harassment of independent NGOs intensified, particularly of groups that focused on election monitoring, uncovering corruption, and addressing human rights abuses. NGO activities and international humanitarian assistance in the North

Caucasus were severely restricted. Some officials, including the ombudsman for human rights, Ella Pamfilova, regional ombudsman representatives, and the chairman of the Human Rights Council, Mikhail Fedotov, regularly interacted and cooperated with NGOs.

The law regulating NGOs requires them to register with the Ministry of Justice. Authorities required NGOs to submit annual reports to the government that disclose sources of foreign funding and detailed information on how they used their funds. By law the Ministry of Justice can register NGOs that receive foreign funding and engage in “political activity” as “foreign agents,” a stigmatizing term that connotes treason or espionage (see section 2.b.). NGOs engaged in “political activities” or in activities that “pose a threat to the country” or that receive support from U.S. persons or organizations are subject to suspension under the “Dima Yakovlev” law. The same law prohibits these NGOs from having dual-U.S. citizen members.

During the year the government used the law on foreign agents to justify inspections of NGOs as well as the selective warning, prosecution, and listing of various groups. By the end of the year, the Ministry of Justice had listed 28 NGOs as “foreign agents.”

Even after adding organizations to the registry of foreign agents, the Ministry of Justice pursued efforts intended to discredit or curtail these organizations’ activities. For example, the ministry brought a case against the Russia Memorial Society in October, written as an administrative complaint regarding the registration status of the organization’s affiliate groups but which human rights defenders and members of the organization agreed was intended to close down the organization. The first hearing on the case occurred on November 13, when the Supreme Court suspended reading its verdict to allow the Russia Memorial Society to “reorganize to comply with federal regulations.” In the second hearing on the case, on December 17, the Supreme Court again postponed a verdict until January 2015.

High-ranking officials at times displayed a hostile attitude towards the work of human rights organizations and suggested that their work was unpatriotic and detrimental to the country’s national security.

Ramzan Kadyrov, the appointed leader of the Republic of Chechnya, frequently disparaged and threatened human rights activists. On March 1, Kadyrov called the head of the NGO Committee Against Torture, Igor Kalyapin, “a traitor” and the

victims of alleged torture that Kalyapin represented “bandits and drug addicts.” In the aftermath of a December 4 terrorist attacks in Grozniy, the Committee Against Torture came under strong government pressure after it submitted a request to the prosecutor general to evaluate the legality of Kadyrov’s public threats to burn down the homes of militants (see section 1.g.).

On multiple occasions President Putin warned the FSB against the “destructive purposes” of NGOs. The terms “foreign agent,” “political agent,” and “fifth column” were used in official speeches and publications to stigmatize NGOs, opposition politicians, and human rights activists.

Authorities continued to apply a number of indirect tactics to suppress or close domestic NGOs, including application of various laws and harassment in the form of investigations and raids. They also employed laws on extremism and libel to restrict the activities of NGOs and criticism of the government (see sections 2.a., 2.b., and 1.e.).

Authorities generally refused to cooperate with NGOs that were critical of their activities. International human rights NGOs had almost no presence east of the Urals. A few local NGOs addressed human rights issues in these regions but often chose not to work on politically sensitive topics to avoid retaliation by local authorities.

Authorities increased the amount of government funds available to support human rights NGOs. The Office of the Human Rights Ombudsman announced quarterly grants to various NGOs to support their domestic activities. Some NGOs worried that accepting government funds would limit their operational independence and ability to voice criticism of government policies, or leave them more vulnerable to politically motivated prosecution for supposed “misuse” of government grant funds.

For example, on July 23, the newspaper *Vedomosti* reported that the NGO Rights of the Child had been told to return the remaining two-thirds of its 2013 government grant, allegedly for failing to organize an event it had agreed to hold (which the head of the organization stated he organized), and had received a notice of an unplanned inspection by authorities.

Government Human Rights Bodies: Some government institutions continued to promote the concept of human rights and intervened in selected abuse complaints, despite widespread doubt as to their effectiveness.

Many observers did not consider the 126-member Public Chamber, composed of appointed members from civil society organizations, to be an effective check on the government. Some prominent human rights groups declined to participate in the chamber due to concern that the government would use it to increase control over civil society.

The Presidential Council for Civil Society and Human Rights (Human Rights Council) is an advisory body to the president. The council was tasked with monitoring systemic problems in legislation and keeping track of individual human rights cases, developing proposals to submit to the president and government departments, and monitoring their implementation. Membership increased at the end of 2012 from 40 to 65 members, with the president selecting the new members by decree. Human rights advocates expressed concern that the additions were made to increase progovernment membership and weaken the council. At year's end the council had 61 members. While human rights activists commented that the council sometimes offered blanket support for government policies, on March 2, the group released a statement signed by 27 of its 61 members calling on the government not to invade Ukraine, stating that threats to Russians there were far from severe enough to warrant sending in troops. The statement quickly disappeared from the council's website, reportedly due to government pressure.

Human Rights Ombudsman Ella Pamfilova commented publicly on a range of human rights problems, such as police violence, prison conditions, the treatment of children, and religious freedom. Leaders of several human rights NGOs noted that Pamfilova was generally effective as an official advocate for many of their concerns, despite her limited authority. Pamfilova's office also selected and sponsored the quarterly presidential grants made to NGOs.

The Human Rights Ombudsman's Office includes several specialized sections responsible for investigating complaints. All but six of the country's regions had regional ombudsmen with responsibilities similar to Pamfilova's. Their effectiveness varied significantly, and local authorities often undermined their independence.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination based on race, gender, language, social status, or other circumstances, but the government did not universally enforce these prohibitions.

During the year hostile rhetoric and propaganda against some groups disseminated through state-run media outlets contributed to discrimination and xenophobia. The escalation in anti-immigrant and anti-LGBT rhetoric created an atmosphere in which nationalist groups could attack these persons with impunity, sometimes with police collusion.

Women

Rape and Domestic Violence: Rape is illegal, and the law provides the same punishment for a relative, including the spouse, who commits rape as for a nonrelative. Rape victims may act as full legal parties in criminal cases brought against alleged assailants and may seek compensation as part of a court verdict without initiating a separate civil action. While members of the medical profession assisted assault victims and sometimes helped identify an assault or rape case, doctors were often reluctant to provide testimony in court.

The penalty for rape is three to six years' imprisonment for a single offender and four to 10 years' if a group of persons commits the crime. Violations are punishable by eight to 15 years in prison if the victim was between the ages of 14 and 18, and by 12 to 20 years in prison if the victim died or was under the age of 14. According to NGOs many law enforcement personnel and prosecutors did not consider spousal or acquaintance rape a priority and did not encourage reporting or prosecuting such cases. NGOs reported local police officers sometimes refused to respond to rape or domestic violence calls unless the victim's life was directly threatened.

According to the Federal State Statistics Service, authorities recorded nearly 5,000 reported rapes by December, approximately 4 percent fewer than in the same period in 2012. According to NGOs many women did not report rape or other violence due to fear of social stigma and the lack of government support.

Domestic violence remained a major problem. There is no significant domestic violence provision in the criminal code and no legal definition of domestic violence. The two statutes that address bodily harm are general in nature and do not permit police to initiate a criminal investigation unless the victim files a complaint. Federal law prohibits battery, assault, threats, and killing, but most acts of domestic violence did not fall within the jurisdiction of the Prosecutor's Office. According to NGOs police were often unwilling to register complaints of domestic violence and frequently discouraged victims from submitting them. The

government does not gather comprehensive data on domestic violence, but although statistics were incomplete, the Interior Ministry published data in 2012 showing that violence in at least one of its forms is found in nearly one in four families. Comparatively, a study published in 2013 in *RIA Novosti* of 2,200 individuals conducted in 50 towns and cities across the country noted that 70 percent of women said they had been subjected to at least one form of violence (physical, sexual, economic, or psychological) by their husbands, and 36 percent experienced both physical and psychological violence. Furthermore, the same 2013 study indicated that approximately 14,000 women were killed annually by their husbands or other intimate partners, accounting for approximately two-thirds of all intentional homicides. The study also noted that up to 40 percent of serious violent crimes took place within the family and that 36,000 women were beaten every day by their husbands.

The NGO Center for Women's Support asserted that a majority of domestic violence cases filed were either dismissed on technical grounds or transferred to a reconciliation process conducted by a justice of the peace, whose focus was on preserving the family rather than punishing the perpetrator. Civil remedies for domestic violence include administrative fines and divorce. Physical harm, property, and family rights cases, such as divorce, asset division, and child custody, cannot be heard in the same case or the same court.

According to the ANNA National Center for the Prevention of Violence in Russia, the government operated approximately 23 women's shelters across the country.

Female Genital Mutilation/Cutting (FGM/C): FGM/C is not specifically prohibited in the criminal code. Local NGOs in Dagestan reported that FGM/C was occasionally practiced in certain villages in the republic.

Other Harmful Traditional Practices: According to human rights groups, honor killings of women in Chechnya, Dagestan, and elsewhere in the North Caucasus region continued. Human rights groups further reported that honor killings were underreported and rarely prosecuted because of community collusion to cover up such crimes.

Press reports covered several honor killings during the year. For example, on November 21, police detained an unnamed man in Dagestan after pulling him over at a traffic checkpoint and noticing the dead body of his 21-year-old daughter in the car. According to *Caucasian Knot*, the man had strangled his daughter because

he believed that her communicating with men had brought shame to the family. At year's end the man was awaiting trial on a murder charge.

In some parts of the North Caucasus, women continued to face bride kidnapping, polygyny, forced marriage (including child marriage), legal discrimination, and enforced adherence to Islamic dress codes. As part of his “modesty campaign,” initially announced in 2007, the head of the Chechen Republic, Ramzan Kadyrov, required women to wear headscarves in public (including at schools, universities, and in government offices) and advocated seizure of cell phones from young women to prevent potential illicit contact with men.

There were cases in some parts of the North Caucasus where men, claiming that kidnapping brides is an ancient local tradition, reportedly abducted and raped young women, in some cases forcing them into marriage. In other cases the women were shunned because they were no longer virgins and could not enter a legitimate marriage, according to local custom. On October 31, in Stavropol Region, a 19-year-old girl leaped from a fourth-floor balcony in an attempt to escape a man from Dagestan who had abducted her and intended to marry her. The man had allegedly forced the woman into his vehicle on October 23 and then held her against her will in an apartment until October 31, when she jumped from the window and was saved by a neighbor on a balcony below. Police opened an investigation into the incident.

Sexual Harassment: The law does not specifically prohibit sexual harassment in the workplace, which remained a widespread problem. Instead, the criminal code contains a general provision against compelling a person to perform actions of a sexual character by means of blackmail, threats, or by taking advantage of the victim's economic or other dependence on the perpetrator.

Reproductive Rights: The government recognizes the basic right of couples and individuals to decide freely and responsibly the number, spacing, and timing of their children, and to have the information and means to do so. Persons have the right to access reproductive health services, regardless of ethnicity or social background, either in conjunction with or separate from services offered by religious institutions. While there are no legal restrictions on access to contraceptives, the Russian Orthodox Church and Muftis Council continued their opposition to family planning initiatives, and access to family planning in the country was limited, especially outside of big cities. Senior government leadership explicitly encouraged women to have as many children as possible to counteract the country's declining population, particularly among ethnic Russians.

Discrimination: Women encountered discrimination in employment, although the constitution and law provide that men and women enjoy the same legal status and rights under family law, labor law, property law, inheritance law, and in the judicial system. Men and women have an equal right to obtain a bank loan, but women often encountered significant restrictions. There was no government office devoted to the protection of women's legal rights.

Discrimination based on gender in compensation, professional training, hiring, and dismissal were characteristic of the labor market. Employers often preferred to hire men to save on maternity and child-care costs and avoid the perceived unreliability associated with women with small children. Such discrimination was often very difficult to prove.

A 2013 law prohibits employer discrimination in posting job vacancy information. It prohibits employers from requesting workers with specific gender, race, nationality, address registration, age, and other factors unrelated to personal skills and competencies. Notwithstanding the law, vacancy announcements continued to specify gender and age requirements, and some also specified a desired physical appearance and preference for applicants who were open to intimate relations with their prospective supervisors.

The labor code restricts women's employment in jobs with "harmful or dangerous conditions or work underground, except in nonphysical jobs or sanitary and consumer services," and forbids women's employment in "manual handling of bulk weights that exceed the set limits for their handling." According to the NGO Peterburgskaya Egida, this law resulted in authorities compiling a list of 456 occupations from which it was legal to exclude women, including those of diver, paratrooper, and firefighter. The International Labor Organization documented a widespread gender pay gap and noted that women predominated in low-paying jobs.

The law upholds equal ownership rights for women and men. The civil code provides equal rights to access to land and access to other property for men and women. All property acquired during a marriage is the couple's joint property; unless their marriage contract states otherwise, and it is split into two equal shares in the event of divorce. Each spouse retains ownership and management of property acquired before marriage or inherited after marriage. Traditional legal practices in the North Caucasus award the husband custody of children and all

property in divorce cases. As a result women in the region were often unwilling to seek divorce, even in cases of abuse.

Children

Birth Registration: By law citizenship derives from parents at birth or from birth within the country's territory if the parents are unknown or if the child cannot claim the parents' citizenship. Newborns were generally registered at the local civil registry office where the parents live. A parent must apply for registration within one month of the birth. Birth certificates were issued on the basis of the medical certificate of the hospital where a baby was born.

Education: Education is free and compulsory through grade 11. Regional authorities frequently denied school access to the children of persons who were not registered as residents of the locality, including Roma, asylum seekers, and migrant workers.

Child Abuse: Child abuse was a significant problem. According to Ministry of Internal Affairs data, in 2013 there were 8,490 reported sexual crimes against children, a decrease of 3.8 percent from 2012, when 8,825 crimes were reported. The data indicated there were 1,330 rapes and other sexually violent acts against children in 2013, up more than 18 percent from 2012.

According to a 2011 report published by the NGO Foundation for Assistance to Children in Difficult Life Situations, 2,000 to 2,500 children died annually from domestic violence. Internal Affairs Ministry data also indicated that the suicide rate for 15- to 19-year olds in the country was high, approximately 30 per 100,000 children. There were 558 suicides recorded among this population in 2013, down from 653 in 2012.

Early and Forced Marriage: The minimum legal age for marriage is 18 for both men and women. Local authorities can authorize marriage from the age of 16 under certain circumstances, and even earlier in some regions.

Female Genital Mutilation/Cutting (FGM/C): FGM/C is not specifically prohibited in the criminal code. Local NGOs in Dagestan reported that FGM/C was occasionally practiced in certain villages in the republic.

Sexual Exploitation of Children: The age of consent is 16. Children, particularly homeless ones and orphans, were exploited for child pornography. While

authorities viewed child pornography as a serious problem, the law does not define child pornography, criminalize its possession, or provide for effective investigation and prosecution of it. The law prohibits the manufacture, distribution, and possession with intent to distribute of child pornography, but possession without intent to distribute is not prohibited by law. Manufacture and distribution of pornography involving children under 18 is punishable by two to 10 years in prison, or three to 15 years in prison if it involves children under 14. Courts often dismissed criminal cases, however, because of the lack of clear standards or definitions. Data from the INHOPE foundation, which supports national hotlines to report child pornography, suggested that 87 percent of child pornography distributed in the country in 2013 was free of charge.

According to the Judicial Department of the Supreme Court, in 2013 there were 146 persons convicted for the manufacture and distribution of child pornography. Similar to its authority to regulate websites considered to contain extremist materials, Roskomnadzor has the power to immediately shut down any website without due process until its owners prove its content does not include child pornography.

Displaced Children: According to statistics from the Ministry of Internal Affairs, there were nearly 198,000 orphaned children in the country in 2013, down 24 percent from 2012. Each day an average of 200 children were taken from negligent parents, and more than 550,000 children were located in various types of institutional and foster care. In a 2008 report, the NGO Children's Rights estimated that approximately 40,000 children ran away from home annually to escape abuse and neglect, and 20,000 orphans fled orphanages to escape similar conditions.

Homeless children often engaged in criminal activities, received no education, and were vulnerable to substance abuse. Some children on the streets were forced into prostitution. Law enforcement officials reportedly abused street children, blamed them for unsolved crimes, and committed illegal acts against them, including extortion, detention, and psychological and sexual violence.

Regional ombudsmen for children operated in all the country's regions. They had the authority to conduct independent investigations relating to the violation of children's rights, inspect all institutions and executive offices dealing with minors, establish councils of public experts, and conduct independent evaluations of legislation affecting children. A number of schools in the Moscow and Volgograd

oblasts had school ombudsmen to deal with children and families and identify potential conflicts and violations of children's rights.

International Child Abductions: The country is a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For country-specific information, see the Department of State's report at travel.state.gov/content/childabduction/english/country/russia.html.

Anti-Semitism

The 2010 census estimated the Jewish population at 150,000. According to the Federation of Jewish Communities of Russia, the Jewish population may have been as high as 750,000.

Polling data shows a low but consistent percentage of the general population agreed with anti-Semitic statements. A Levada Center poll published in November 2013 reported 7 to 8 percent of respondents considered Jews "enemies." The poll was based on a representative sample of 1,603 persons from 45 regions of the country and had a 3.4 percent margin of error.

During the year SOVA reported an increase in anti-Semitic rhetoric in state media and by public officials but no marked increase in the number of anti-Semitic attacks on and/or vandalism of Jewish sites.

A significant violent attack occurred on December 2, when three assailants attacked student Shlomo (Fyodor) Romanovskiy yards away from the entrance of a yeshiva in the Ramenskiy District of Moscow.

In May the Russian Jewish Congress issued a report noting a marked increase in anti-Semitism in the country from January through April; although this report characterized anti-Semitism as encompassing both rhetoric and physical violence. During the year there were a number of minor anti-Semitic incidents, including cemetery attacks and ultranationalists chanting anti-Semitic slogans at public rallies.

The vast majority of anti-Semitic sentiment throughout the year, according to the Russian Jewish Congress, "was manifested first and foremost in public anti-Semitic statements, the number of which has increased dramatically." For example, in February, Evelina Zakamskaya, the news anchor of Rossiya24, one of the country's largest state-controlled television channels, agreed with the

arguments of nationalist author Aleksandr Prokhanov and stated that Jewish organizations “were ushering in a second Holocaust with their own hands... just as they ushered in the first one.”

There were also a number of incidents in which state-controlled television presented anti-Semitic content. For example, several state television documentaries broadcast between February and May contained segments that ‘exposed’ the supposedly nefarious Jewish background of major Ukrainian politicians, including Yulia Tymoshenko and Arseny Yatsenyuk.

There were a number of high-profile incidents in which government officials publicly expressed anti-Semitic sentiments, often when referring to the political opposition. For example, on February 11, Oleg Bolychev, a Kaliningrad politician from the ruling United Russia party, publicly called his opponents “Jews, hiding among the opposition” and destroying the country.

The government investigated anti-Semitic crimes, and some courts placed anti-Semitic literature on the Ministry of Justice’s list of banned extremist materials.

Trafficking in Persons

See the Department of State’s *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

While several laws prohibit discrimination against persons with physical, sensory, intellectual, and mental disabilities in employment, education, transportation, access to health care, and the provision of state services, the government generally did not enforce these laws.

No laws prohibit discrimination in air travel.

Persons with disabilities continued to face discrimination and denial of equal access to education, employment, and social institutions. Persons with mental disabilities were subject to severe discrimination in education and employment. In addition the conditions of guardianship imposed by courts deprived them of almost all personal rights. For example, under the family code, individuals with mental disabilities at times were prevented from getting married without a guardian’s consent.

Conditions in institutions for adults with disabilities were often poor, with unqualified staff and overcrowding. Institutions rarely attempted to develop the abilities of residents, whom they frequently confined to the premises and whose movements they sometimes restricted within the institutions themselves.

Federal law requires that buildings be accessible to persons with disabilities, but authorities did not enforce the law, and many buildings were not accessible. In a 2013 report, HRW noted that in apartment buildings constructed before 2001 (i.e., prior to the development of minimum accessibility standards for new construction), doorways and elevators were too narrow for wheelchairs, and buildings lacked elevators or appropriate ramps. In some cases buildings constructed after 2001 also lacked these accommodations. This lack of building access was an insurmountable barrier to employment, education, and social engagement for the vast majority of wheelchair-bound persons interviewed in the report. The report also noted that critical public facilities and emergency services remained largely inaccessible to persons with disabilities.

As of 2013 federal law allows regional governments to set quotas for employment of persons with disabilities. Companies with 35 to 100 employees have a quota of 1 to 3 percent, while those with more than 100 employees have a 2 to 4 percent quota. Some local authorities and private employers continued to discourage persons with disabilities from working, and there was no penalty for failure to honor quotas.

Because only 3 percent of schools could accommodate them, most children with disabilities could not study in their communities and were isolated from other community members.

According to an HRW report released in September, nearly 30 percent of all children with disabilities lived in state orphanages where they could face violence and neglect. Some children interviewed by HRW said that orphanage staff beat them, injected them with sedatives, and sent them to psychiatric hospitals for days or weeks at a time to control or punish them.

HRW reported that at least 95 percent of children living in orphanages and foster care had at least one living parent, although children with disabilities who entered institutions at a young age were unlikely to return to their birth families as a result of the practice of local-level state commissions to recommend continued institutionalization of children. Staff in institutions HRW visited occasionally

discouraged visits with families or other contact with family members, claiming that such contact “spoiled” children by getting them accustomed to too much attention. Within orphanages, HRW documented the segregation of children whom staff deemed to have the most “severe” disabilities into “lying-down” rooms, where they were confined to cribs and often tied to furniture with rags. Many of these children received little attention except for feeding and diaper changing.

While only 2 to 3 percent of children in the country suffered from disabilities, according to data from the Ministry of Internal Affairs, more than 45 percent of the country’s total population of children with disabilities was in institutions. Authorities generally segregated children with disabilities from mainstream society through a system that institutionalized them until adulthood. Graduates of such institutions often lacked the necessary social, educational, and vocational skills to function in society.

There were numerous cases of children dying as a result of abuse in state facilities. For example, on May 2, HRW released a report that described the case of a seven-year old boy with an intellectual disability who died on May 1 in an orphanage in Arzamas, Nizhniy Novgorod Oblast, after a health worker used cloth diapers to tie him to his bed. While authorities investigating the case did not establish that anyone intentionally inflicted harm, medical accounts following the situation stated that the boy may have choked on his own vomit and that being tied down stopped him from rolling over to breathe. According to the orphanage, the boy’s government-issued medical forms recommended that staff use physical restraints as treatment for hyperactivity. Following the incident the children’s rights ombudsman, Pavel Astakhov, urged the government to investigate the death and called for a ban on the practice of restraining children, noting that other children had died in similar circumstances. No official results of the investigation were available at year’s end.

There appeared to be no legal mechanism by which individuals could contest their assignment to a facility for persons with disabilities. The classification of children with mental disabilities to categories of disability often followed them through their lives. The official designations “imbecile” and “idiot,” assigned by a commission that assesses children with developmental problems at the age of three, signify that authorities consider a child to be uneducable. These designations were almost always irrevocable. The designation “debil” (having slight cognitive or intellectual disability) followed an individual on official

documents, creating barriers to employment and housing after graduation from state institutions.

Election laws do not specifically mandate that polling places be accessible to persons with disabilities, and the majority of polling stations were not. Election officials generally brought mobile ballot boxes to the homes of voters with disabilities. In the months prior to the 2012 presidential elections, television commercials instructed citizens with disabilities on their rights and voting procedures.

National/Racial/Ethnic Minorities

The law prohibits discrimination based on nationality, but government officials increasingly subjected minorities to discrimination. There was a significant rise in xenophobic societal violence and discrimination against minorities, particularly persons from the Caucasus and Central Asia, dark-skinned persons, Roma, and certain foreigners. According to SOVA, as of December racial violence resulted in the death of at least 20 persons, while 173 others were injured and nine received death threats. Incidents were reported in 32 regions. Violence was concentrated in Moscow and St. Petersburg. The number of reported hate crimes against minority religious groups increased during the year, and skinhead groups and other extreme nationalist organizations fomented racially motivated violence. Racist propaganda remained a problem, although courts continued to convict individuals of using propaganda to incite ethnic hatred.

The ZINC Center for the Study of Ethnic Conflicts, an independent think tank, released a report detailing ethnic tension from September 2013 to March 2014. The report noted that the regions with the highest level of ethnic tension were Dagestan, Moscow, St. Petersburg, Stavropol Krai, and Tatarstan. During the period covered by the report, the center noted 570 ethnically motivated hateful acts of varying intensity (from placing xenophobic content on the internet to violent clashes with weapons resulting in fatalities) throughout the country.

Skinhead violence continued to be a serious problem. Skinheads primarily targeted foreigners, particularly Asians and individuals from the Caucasus, as well as individuals they identified as being from Ukraine. Skinheads also expressed anti-Muslim and anti-Semitic sentiments. Membership claims by these organizations were difficult to verify. The country's neo-Nazi subculture again marked the birthday of Adolf Hitler (April 20) with attacks against members of ethnic minorities.

In response to the December 2013 Volgograd bombings, the SOVA Center noted that there was an increase in the number of ultranationalist and skinhead attacks on migrants at the beginning of 2014. On January 9, SOVA released a report describing a number of YouTube and VKontakte videos from the preceding week that showed ultranationalist groups beating persons on camera and forcing them to say anti-Islamic slogans.

There were reports of violent attacks on Roma. On March 27, in Kasimov in Ryazan Oblast, three young men who were members of a local ultranationalist group broke into an apartment where a Romani family lived and began to beat the residents, who were sleeping in their beds, while shouting racist slogans. According to SOVA the men were convicted in December of battery and hooliganism motivated by religious hatred and were sentenced to between two and four years in prison.

In several instances the government engaged in selective destruction of housing or relocation of Romani populations. For example, on September 8, the Perm District Court approved a decision to level a local Romani settlement. On September 9, OMON (special-purpose Internal Affairs Ministry forces) troops bulldozed 22 of the 40 homes occupied by members of the Romani community. Local media reports of the action employed anti-Romani rhetoric to support the destruction.

In some cases authorities held perpetrators responsible for xenophobic violence. For example, on June 24, a St. Petersburg City court sentenced eight members of the group National Socialism/White Power to three- to 24-year terms in high-security prisons for 10 murders, five attempted murders, and acts of arson carried out in 2009-10.

Police and migration officials continued to engage in anti-immigrant raids in markets, factories, the subway, and city streets in Moscow, although arrests and detentions were considerably fewer than in 2013.

Although the number of anti-immigrant raids and riots decreased, there were examples of mass anti-immigrant rioting in several instances. According to media reports, on March 15--after Zhakhongir Akhmedov, a citizen of Uzbekistan, allegedly killed a Moscow resident, Leonid Safyannikov--a subsequent gathering of more than 300 persons in Moscow's Pushkin Square that began as a silent memorial service for Safyannikov turned violent. The crowd gathered in front of a local administration building and proceeded to demolish a series of immigrant-

owned market stalls. As of year's end, authorities had not opened an investigation into the incident.

On May 6, the investigative committee completed its report detailing the events that led to the 2013 killing of Yegor Shcherbakov, which had provoked anti-immigrant riots in the Moscow suburb of Biryulyovo-West. On July 18, a court sentenced Azerbaijan citizen Orhan Zeynalov to 18 years in prison for murder.

Human rights organizations expressed concern that Romani children in schools experienced discrimination. Some schools refused to register Romani students on the grounds that they lacked documents, while others segregated Romani students because of their ethnicity or placed them in classes designed for children with learning disabilities.

Indigenous People

The law provides for support of indigenous ethnic communities, permits them to create self-governing bodies, and allows them to seek compensation if economic development threatens their lands. Groups such as the Buryats in Siberia and ethnic groups in the far north (including the Enver, Tatarli, Chukchi, and others) continued to work actively to preserve and defend their cultures as well as their right to benefit from the economic resources of their regions.

Most members of indigenous communities asserted that they received the same treatment as ethnic Russians, although some groups claimed they were unrepresented, or underrepresented, in regional governments.

The Russian Association of Indigenous People of the North was the country's largest NGO for indigenous people, representing 41 groups with approximately 300,000 members.

In September authorities prevented representatives of native communities from traveling to attend a UN conference (see section 2.d.).

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

A 2013 law criminalizes the "propaganda" of nontraditional sexual relations to minors. The law effectively limits the rights of free expression and assembly for citizens who wish to publicly advocate for LGBT rights or express the opinion that

homosexuality is normal. Examples of what the government considered LGBT propaganda included materials that “directly or indirectly approve of people who are in nontraditional sexual relationships.” LGBT persons reported heightened societal stigma and discrimination, which some attributed to increasing official promotion of intolerance and homophobia. Gay rights activists asserted that the majority of LGBT persons hid their orientation due to fear of losing their jobs or their homes as well as the threat of violence. Medical practitioners reportedly continued to limit or deny LGBT persons health services due to intolerance and prejudice.

LGBT persons faced discrimination in hiring and in the workplace. In a June report, HRW documented seven cases in six regions of the country in which employers fired LGBT persons for their sexual orientation or gender identity. In other cases employers fired LGBT persons for their public activism in support of LGBT rights.

In Moscow authorities refused to allow a gay pride parade for the ninth consecutive year, despite an ECHR ruling that the denial violated the rights to freedom of assembly and freedom from discrimination and otherwise violated free expression, association, and assembly rights of LGBT persons.

Human rights groups reported continuing violence against LGBT individuals. Openly gay men were particular targets of skinhead aggression, and police often failed to respond. Vigilante groups also used social media to pursue and bully LGBT teenagers and in some cases lure them to encounters where they would torture them and subject them to degrading treatment, which the groups would sometimes record and post on the internet.

During the year there were reports of killings motivated by the sexual orientation of the victim. On February 25, local media in Moscow reported the Moscow City Court sentenced a man to nine years in prison for killing a doctor who allegedly suggested that they have “homosexual relations.” The man reportedly visited the apartment of the doctor and substance abuse counselor to seek medical help while under the influence of an unspecified drug. During that meeting the unnamed man told the court the doctor proposed that they have sex, infuriating the patient, who stabbed him in the back with a knife. The court found the man guilty of manslaughter.

In some cases courts gave reduced sentences to perpetrators of violence against LGBT individuals due to the sexual orientation of the victim. On September 17, a

Vilyuchinsk court sentenced a man to one year of correctional labor for the 2012 murder of a gay Kamchatka resident on the basis that the crime was committed in a fit of passion.

On March 17, Andrei Lishchinskiy, the owner of Central Station, Moscow's largest gay club, announced that he would close the nightclub permanently on March 21. The closure came as a result of a number of attacks in the previous year, including shootings, the release of a poisonous gas, and a coordinated attack by approximately 100 men. Lishchinskiy previously said that Moscow Police had refused to investigate any of the incidents and that none of his 30 complaints had received a police response.

LGBT activists often experienced threats and attacks in public, with police unwilling to assist. For example, on May 31, near the Oktyabr'skaya metro station in Moscow, a group of unidentified young men attacked a group of LGBT activists planning to participate in a "rainbow rally" dedicated to protecting the rights of gay and lesbian adolescents. The group attacked the activists with pepper spray and threw stones and eggs at the activists. Police did not arrest any of the attackers, and authorities did not open an official investigation.

On the weekend of February 27, the LGBT Sports Federation, a nationwide network of LGBT organizations focused on athletic engagement between LGBT individuals and supporters, attempted to hold a series of athletic competitions in Moscow, called the Open Games. A combination of private efforts and coordinated police engagements interrupted the planned events, including a bomb threat at the opening ceremony and venue cancellations for every event except table tennis. Similar disruptions occurred during St. Petersburg's Queer Fest in September.

Although the law allows transgender individuals to change their names and gender classifications on government documents, they faced difficulties because the government had not established a standard procedure for doing so, and many civil registry offices denied these requests. When their documents failed to reflect their gender accurately, transgender persons often faced discrimination in accessing health care, education, housing, and employment.

A homophobic campaign continued in the state-controlled media, in which officials, journalists, and others called LGBT persons "perverts," "sodomites," and "abnormal," and conflated homosexuality with pedophilia.

HIV and AIDS Social Stigma

Persons living with HIV/AIDS faced significant legal discrimination and informal stigma-based barriers. They were prohibited from working in some areas of medical research and medicine. On September 23, the Supreme Court upheld a law that prohibits persons with HIV/AIDS from adopting children, based on the assertion that HIV might mutate and harm the potential adoptee. Persons living with HIV/AIDS, particularly those who were intravenous drugs users, faced informal barriers to accessing antiretroviral treatment. Regional AIDS centers often demanded that drug users complete drug addiction treatment, which was severely lacking or nonexistent in most areas, before starting treatment. According to NGO activists, men who have sex with men were discouraged from seeking antiretroviral treatment, since treatment exposes the fact that these individuals have the virus, while sex workers were fearful to appear in the official system due to threats from law enforcement. Economic migrants also concealed their HIV status and avoided treatment for fear of being deported. By law foreign citizens who are HIV positive can be deported.

Prisoners with HIV/AIDS experienced regular abuse and denial of medical treatment.

Although the law provides for treatment of HIV-positive persons, drug shortages and lack of funds caused large gaps in treatment. In Murmansk complaints from patients caused the prosecutor general to inspect the Murmansk AIDS Center and regional Ministry of Health because patients were given a “vacation” from antiretrovirals for three months due to drug shortages, according to the NGO Patients Control.

Other Societal Violence and Discrimination

The lack of an internal passport often prevented homeless citizens from fully securing their legal rights and social services. Homeless persons faced barriers to obtaining legal documentation.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides that workers can form and join independent unions, bargain collectively, and conduct legal strikes. The law prohibits antiunion discrimination,

but it does not require employers to reinstate workers fired due to their union activity. The law prohibits reprisals against striking workers. Unions must register with the Federal Registration Service. The law requires labor unions to be independent of government bodies, employers, political parties, and NGOs.

The law places several restrictions on the right to bargain collectively. For example, only one collective bargaining agreement is permitted per enterprise, and only a union or group of unions representing at least half the workforce can bargain collectively. The law does not specify who may be given authority to bargain collectively when there is no trade union in an enterprise.

The law imposes some limits on the right to strike. The labor code prohibits strikes in the military and emergency response services. It also prohibits strikes in essential public service sectors, including utilities and transportation, and strikes that would threaten the country's defense and safety, or the life and health of its workers. The law also prohibits some nonessential public servants--such as railway, postal, and municipal workers as well as other public servants in roles other than law enforcement--from striking and imposes compulsory arbitration in those sectors. Solidarity strikes and strikes on issues related to state policies are illegal, as are strikes that do not respect the onerous time limits, procedures, and requirements mandated by law. In the event a declared strike continues after it is ruled illegal, courts may confiscate union property to cover employers' losses. Government policy limited the exercise of freedom of association and collective bargaining.

The Federal Labor and Employment Service (RosTrud) regulates compliance of employers with all elements of labor law and has responsibility to "control and supervise employers for their compliance with the labor legislation and other legal acts which deal with labor norms." State agencies responsible for enforcing the labor law, however, frequently failed to fulfill their responsibilities, and violations of freedom of association were common. Registering unions, for example, was often a cumbersome process, including lengthy delays and convoluted bureaucracy.

Discrimination against employees and trade union leaders due to their union membership was common, as was pressure against workers to leave, or not to join, unions. Labor activists reported police regularly used intimidation techniques against union supporters, including subjecting them to detention and extensive interrogations and provoking physical confrontations with them.

Employers frequently engaged in reprisals against workers for union activity, including threatening to assign them to night shifts, denying benefits, and blacklisting or firing them. Although unions were occasionally successful in court, in most cases company managers who engaged in antiunion activities did not face penalties.

Extensive legal requirements complicated workers' abilities to exercise the right to strike. According to the Federation of Independent Trade Unions of Russia, the legal preparation for a strike takes at least 40 days.

b. Prohibition of Forced or Compulsory Labor

The law prohibits most forms of forced or compulsory labor but allows for compulsory labor as a penal sentence, in some cases as labor contracted to private enterprises. The government did not effectively enforce such laws.

Men and women were engaged in forced labor in the construction industry, textile shops, and agricultural sector (see section 7.c.). Under a state-to-state agreement, approximately 20,000 North Korean citizens per year were sent to Russia to work in a variety of sectors, including the logging industry in the Far East. Observers continued to believe that many of these workers were subjected to conditions of forced labor.

A September 30 Radio Liberty report chronicled a series of cases in which the NGO Alternativa intervened in cases of slave labor in Dagestan. For example, a man from Murmansk, whose name was withheld for privacy reasons, claimed to have been held for 18 years as a migrant slave laborer, first at a brickworks and then, after an unsuccessful attempt to escape, as a cattle herder. Alternativa noted that by October 1, it had secured the release of five slave laborers, compared with at least 12 in 2013. In some cases the victims (most of them Russians but also some from Belarus) said they were drugged after signing a work contract in Moscow or Yekaterinburg and transported unconscious to Dagestan.

Labor and human rights activists documented evidence of forced labor of migrant workers involved in construction projects for the Sochi Winter Olympics. NGOs found that employers involved in construction projects withheld pay, required excessively long working hours, violated contracts, and seized passports and work permits, which when taken together indicated conditions of forced labor (see also section 7.e.).

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits the employment of children under age 16 in most cases and regulates the working conditions of children under age 18, including the prohibition of dangerous nighttime and overtime work. The law permits children to work at age 14 under certain conditions and with the approval of a parent or guardian. Such work must not threaten the child's health or welfare. The labor code lists occupations that are restricted for children under 18, including work in unhealthy or dangerous conditions, underground work, or jobs that might endanger a child's health and moral development.

Authorities did not effectively implement laws and policies prohibiting child labor.

The Federal Labor and Employment Service is responsible for inspecting enterprises and organizations to identify violations of labor and occupational health standards for minors. Typical violations of child labor legislation were classified as administrative violations and were punished with fines.

The most recent data available indicated that in the first quarter of 2013, RosTrud conducted 498 inspections, during which it found 288 child labor violations. The service issued 60 notices against employers for violating child labor laws, mainly with regard to failure to conclude contracts, overtime work, and failure to assure compliance with health and safety measures. Eight such cases were sent to the Public Prosecutors' Office. During 2012 RosTrud issued a total of 1,101 compliance notices and levied fines totaling 1.247 million rubles (\$21,140) for child labor violations. Information on the number and amount of penalties assessed during the year was not available. The most common problems included the absence of an obligatory medical check, absence of written labor agreements, involvement of minors in harmful or unsafe work environments, and excessive hours.

In urban areas children worked primarily in the construction sector and in the informal sector, engaging in retail services, selling goods on the street, washing cars, and making deliveries. In rural areas children worked in agriculture. Some children, both Russian and foreign, were subjected to commercial sexual exploitation (see section 6, Children).

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect to Employment or Occupation

The law prohibits employment discrimination. Nonetheless, employment discrimination on the basis of sexual orientation was a problem, especially in the public sector and the education field.

The law requires equal pay for equal work.

e. Acceptable Conditions of Work

The subsistence minimum income used by the government as the official poverty line was 7,911 rubles (\$134) per month in the third quarter of the year. The national minimum wage for all sectors was 5,205 rubles (\$88) per month, which was two-thirds of the subsistence minimum. According to the Federal Statistics Service, in the first half of the year, 13.1 percent of the population lived below the subsistence minimum (the official poverty line).

The labor code contains provisions for standard work hours, overtime, and annual leave. The standard workweek cannot exceed 40 hours. Employers may not request overtime work from pregnant women, workers under the age of 18, and other categories of employees specified by federal laws. Standard annual paid leave is 28 calendar days. Employees who perform work involving harmful or dangerous labor conditions and employees in the Far North regions receive additional annual paid leave. Organizations have discretion to grant additional leave to employees.

The labor code stipulates that overtime must be at least 150 percent for the first two hours and not less than 200 percent after that. At an employee's request, overtime may be compensated by additional holiday time. Overtime work cannot exceed four hours in a two-day period or 120 hours in a year for each employee. The law establishes minimum conditions for workplace safety and worker health but does not explicitly allow workers to remove themselves from hazardous workplaces without threat to their employment. The law entitles foreigners working legally in the country to the same rights and protections as citizens.

The government did not effectively enforce these laws in either the formal or informal sectors. Nonpayment of wages is treated as a criminal offense and could

be punished by fines, compulsory labor, and/or imprisonment. The threshold for a criminal offense is partial (i.e., nonpayment of more than half of the employee's wages) for three months, or full nonpayment for two months. Aggravated offenses could potentially be punished by two to five years' imprisonment. Serious breaches of occupational safety and health provisions are also criminal offenses. Experts generally pointed to prevention of these offenses, rather than adequacy of the available punishment, as the main challenge to worker rights protection in these areas. The Federal Labor and Employment Service, the agency that enforced these provisions, noted that state labor inspections were understaffed and inspectors needed additional professional training. They were not able to provide data on the number of inspectors or budgetary and other resources allocated to enforcement of wage, hour, and occupational safety and health laws. According to official statistics from RosTrud, inspectors found 680,000 labor law violations in 2012.

Although no official data were available, experts estimated that the workforce in the informal economy was significant and growing. The largest share of the informal labor market was concentrated in the trade, construction, and agricultural sectors, where workers were more vulnerable to exploitative working conditions.

Labor migrants remained the group most vulnerable to mistreatment and were concentrated primarily in low-quality jobs in construction but also worked in housing and utilities, agriculture, and retail trade, often in the informal sector. Although the Federal Migration Service reported three to five million migrant workers in the country, experts believed that the number was between seven and 12 million, but even approximate numbers were difficult to verify. Many more workers used "patents," or work permits specific to domestic employment, and sometimes worked in jobs that required a permit for work in the formal economy, making them irregular under the law. Patents were easier to obtain but were intended for personal staff. Some migrants also were able to enter and travel in the country on Russian passports based on prior citizenship in the former Soviet Union, making migration harder to count.

Many migrants regularly faced discrimination and hazardous or exploitative working conditions. One global trade union report estimated that 60 workers died in construction related to the Sochi Winter Olympics. Many more faced nonpayment of wages, unsafe working conditions, and long shifts.

There was no national information available on the number of workplace accidents, fatalities, or deaths over the year.